

Week 1: Colonialism and Imperialism

Colonialism

The Historical Context

From 1870 a series of great economic changes in advanced capitalist powers ("Second industrial revolution") brought a wave of new technologies that radically transformed the economy of the most advanced countries.

Cheaper transportation and communication allowed people to travel throughout the world in a way and in a quantity hitherto inconceivable. This process of global integration has been called the first globalization.

In this context we should understand the phenomenon of colonialism or imperialism. Both terms are used interchangeably to refer to the territorial expansion of the European industrial powers, especially after 1870. The result of this expansion was the formation of large overseas empires.

The Causes of Colonial Expansion

The colonial and imperialist expansion undertaken by the industrial powers from 1870-1914 was motivated by several factors:

- Economic factors (raw materials, new markets to sell and buy, valve for population pressure in the metropolis)
- Political factors (national prestige, lobby groups interested in colonization, action of highly influential politicians)
- Geostrategic factors (geographic privileged enclaves)
- Cultural and scientific factors (thirst for knowledge, extension of Western culture)

Causes of Colonialism

When asked about the causes of the European imperial expansion in the late nineteenth century, historians have traditionally favoured economic causes.

Capitalist development led European powers to seek new spaces in which they could obtain:

- Raw materials to supply its industries (textile fibers, minerals...)
- Markets in which to sell their products

- These factors were important, but have been often overstated. It is now known that many colonies were not a good deal for the European countries that formed empires and that, in many cases, the cost of invading and controlling the colonies considerably exceeded the benefits. In fact, commercial exchanges, demographic flows, and financial investments were much more intense between free countries than between the colonial powers and their colonies.

Each country had its own motivations: France, to forget its defeat by Prussia in 1870; Germany and Italy, recently born nations, to reach the greatness of the old European states. Important politicians like the British Disraeli or French

Geostrategic considerations joined the political motives. Countries often conquered a country to hinder the expansion of a rival power or to facilitate communication between different regions of the empire. This was the case of Gibraltar, Malta, or Cyprus or the Suez Canal for the British.



We also should mention what can be called ideological and scientific factors:

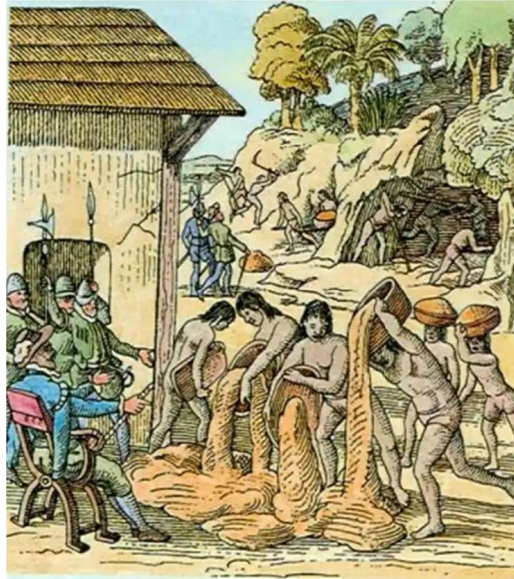
- The eagerness to discover new and unknown territories, something that Europeans had experienced since the fifteenth century.
- The belief on European superiority linked to "social Darwinism".
- The desire to evangelize non-Christian populations.
- The will of extending the values and progress of Western culture.

All these factors were key to understanding European colonial expansion.

Finally, the European imperial expansion cannot be understood without taking into consideration the European technological superiority, the use of quinine to protect Europeans from malaria, and the internal rivalry between ethnic groups that facilitated European invasions.

The Great Colonial Empires and Conflicts between the Powers

European colonial empires were born in the fifteenth and sixteenth centuries. First Portuguese and Spanish, then French, English and Dutch had conquered vast territories on other continents.

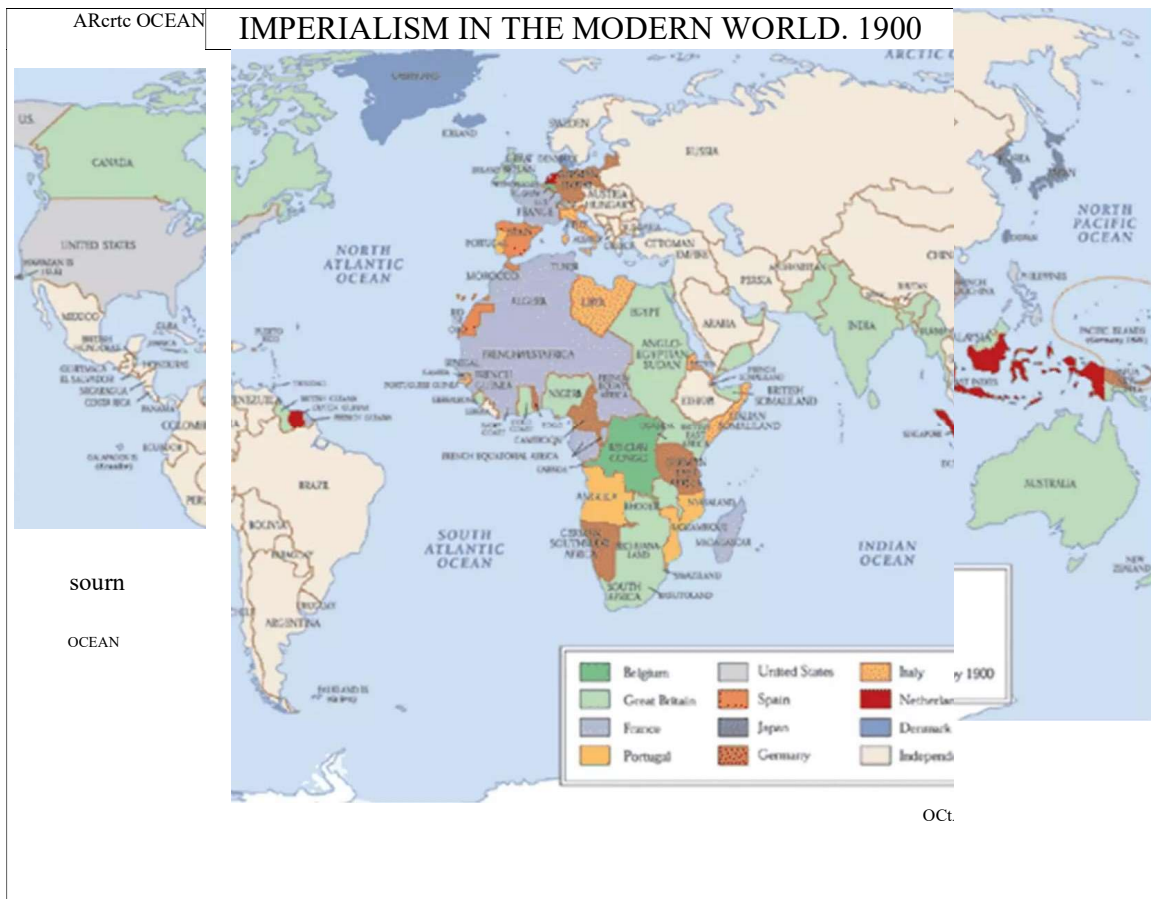


The new expansion of the nineteenth century was led by the great industrial powers.

Throughout the nineteenth and early twentieth century, the various powers were handed an important part of the planet.

- The British Empire constituted the largest in history.
- The French Empire occupied important territories in Africa and Indochina.
- Other empires. European countries like Germany, Italy, Portugal, Holland, or Spain and non-European powers like the United States and Japan.

The metropolis struggle to extend their territories and their interests often clashed and led to diplomatic conflicts. Despite attempts at an agreed upon solution, such as the Berlin Conference in 1895, colonial conflicts were an important factor of international instability.



The British Empire

Great Britain had been established since the seventeenth century as the great European naval power. Encouraged by its spectacular industrial development, the UK configured an empire stretching from Canada in America to Australia and New Zealand in Oceania, from Egypt and South Africa in Africa to the "jewel of the empire," the large colony of India in Asia. Many colonies in Asia and enclaves ranging from the Caribbean (Jamaica) to Asia (Hong Kong and Singapore), to Europe (Gibraltar, Malta, and Cyprus) shaped the most extensive empire in history.

The Consequences of Colonization

The consequences of Western imperialist expansion are complex and it is very difficult to simplify.

Conquest and occupation were based on violence and the colonial system was based on racial oppression and discrimination. In some cases, the economic effects were harmful and indigenous people saw as a foreign culture imposed on their own.

These were some of the most harmful consequences of European colonization:

- Economic exploitation
- Subjection to a foreign control
- Foreigners became the dominant social class
- Loss of its own culture

On the other hand, the Western scientific and technological progress contributed directly or indirectly benefited the colonized populations. We could say that to some extent there were positive consequences:

- Improvement of health conditions
- Access to education for the native elite
- Construction of railways, ports...

Colonialism in Sub-Continent

If looked at the brighter side, even something as out rightly barbaric as colonialism stands a chance of being justified. Apologists for colonialism often use this trademark approach to sweep the British colonial atrocities under the carpet upon which, then, they construct their sandcastle of advantages of colonialism'.

Ascribing advantages to a policy that was premised on oppression not only downplays the endless sufferings that were endured by the millions but also undermines rational thinking. If we start measuring even the most heinous of the acts in terms of the accidental benefits that they might have delivered, as in the case of colonial rule of India, we lose the yardstick to differentiate between the good and bad. But since possessing any such yardstick was least of their concerns, the colonists, and later their apologists, mustered the gall to claim benefits out of the Britain's sordid rule of the subcontinent.

Economy:

The process of colonial rule in India meant economic exploitation and ruin to millions, the destruction of thriving industries, the systematic denial of opportunities to compete, the elimination of indigenous institutions of governance, the transformation of lifestyles and patterns of living that had flourished since time immemorial, and the obliteration of the most precious possessions of the colonised, their identities and their self-respect. In 1600, when the East India Company was established, Britain was producing just 1.8%

of the world's GDP. while India was generating some 23% (27% by 1700). By 1940, after nearly two centuries of the Raj, Britain accounted for nearly 10% of world GDP, while India had been reduced to a poor "third-world" country, destitute and starving, a global poster child of poverty and famine. The British left a society with 16% literacy, a life expectancy of 27, practically no domestic industry and over 90% living below what today we would call the poverty line.

The India the British entered was a wealthy, thriving and commercialising society: that was why the East India Company was interested in it in the first place. Far from being backward or underdeveloped, pre-colonial India exported high quality manufactured goods much sought after by Britain's fashionable society. The British elite wore Indian linen and silks, decorated their homes with Indian chintz and decorative textiles, and craved Indian spices and seasonings. In the 17th and 18th centuries, British shopkeepers tried to pass off shoddy English-made textiles as Indian in order to charge higher prices for them.

The story of India, at different phases of its several-thousand-year-old civilisational history, is replete with great educational institutions, magnificent cities ahead of any conurbations of their time anywhere in the world, pioneering inventions, world-class manufacturing and industry, and abundant prosperity in short, all the markers of successful modernity today- and there is no earthly reason why this could not again have been the case, if its resources had not been drained away by the British.

If there were positive by-products for Indians from the institutions the British established and ran in India in their own interests, they were never intended to benefit Indians. Today Indians cannot live without the railways; the Indian authorities have reversed British policies and they are used principally to transport people, with freight bearing ever higher charges in order to subsidise the passengers (exactly the opposite of British practice).

Railways

The construction of the Indian Railways is often pointed to by apologists for empire as one of the ways in which British colonialism benefited the subcontinent, ignoring the obvious fact that many countries also built railways without having to go to the trouble and expense of being colonized to do so. But the facts are even more damning.

The railways were first conceived of by the East India Company, like everything else in that firm's calculations, for its own benefit. Governor General Lord Hardinge argued in 1843 that the railways would be beneficial "to the commerce, government and military control of the country". In their very conception and construction, the Indian railways

were a colonial scam British shareholders made absurd amounts of money by investing in the railways, where the government guaranteed returns double those of government stocks, paid entirely from Indian and not British, taxes. It was a splendid racket for Britons, at the expense of the Indian taxpayer.

The railways were intended principally to transport extracted resources - coal, iron ore, cotton and so on - to ports for the British to ship home to use in their factories. The movement of people was incidental, except when it served colonial interests; and the third-class compartments, with their wooden benches and total absence of amenities, into which Indians were herded, attracted horrified comment even at the time.

And, of course, racism reigned; though whites-only compartments were soon done away with on grounds of economic viability, Indians found the available affordable space grossly inadequate for their numbers. (A marvelous post-independence cartoon captured the situation perfectly: it showed an overcrowded train, with people hanging off it, clinging to the windows, squatting perilously on the roof, and spilling out of their third-class compartments, while two Britons in *sola topis* sit in an empty first-class compartment saying to each other, "My dear chap, there's nobody on this train!")

Nor were Indians employed in the railways. The prevailing view was that the railways would have to be staffed almost exclusively by Europeans to "protect investments". This was especially true of signalmen, and those who operated and repaired the steam trains, but the policy was extended to the absurd level that even in the early 20th century all the key employees, from directors of the Railway Board to ticket-collectors, were white men - whose salaries and benefits were also paid at European, not Indian, levels and largely repatriated back to England.

Racism combined with British economic interests to undermine efficiency. The railway workshops in Jamalpur in Bengal and Ajmer in Rajputana were established in 1862 to maintain the trains, but their Indian mechanics became so adept that in 1878 they started designing and building their own locomotives. Their success increasingly alarmed the British, since the Indian locomotives were just as good, and a great deal cheaper, than the British-made ones. In 1912, therefore, the British passed an act of parliament explicitly making it impossible for Indian workshops to design and manufacture locomotives. Between 1854 and 1947, India imported around 14,400 locomotives from England, and another 3,000 from Canada, the US and Germany, but made none in India after 1912. After independence, 35 years later, the old technical knowledge was so completely lost to India that the Indian Railways had to go cap-in-hand to the British to guide them on setting up a locomotive factory in India again. There was, however, a fitting postscript to this saga. The principal technology consultants for

Britain's railways, the London-based Rendel, today rely extensively on Indian technical expertise, provided to them by Rites, a subsidiary of the Indian Railways.

Democracy and Rule of Law?

Britain did not work to promote democratic institutions under imperial rule, as it liked to pretend. Instead of building self-government from the village level up, the East India Company destroyed what existed. The British ran government, tax collection, and administered what passed for justice. Indians were excluded from all of these functions. When the crown eventually took charge of the country, it devolved smidgens of government authority, from the top, to unelected provincial and central "legislative" councils whose members represented a tiny educated elite, had no accountability to the masses, passed no meaningful legislation, exercised no real power and satisfied themselves they had been consulted by the government even if they took no actual decisions.

As late as 1920, under the Montagu-Chelmsford "reforms", Indian representatives on the councils - elected by a franchise so restricted and selective that only one in 250 Indians had the right to vote - would exercise control over subjects the British did not care about, like education and health, while real power, including taxation, law and order and the authority to nullify any vote by the Indian legislators, would rest with the British governor of the provinces.

Democracy, in other words, had to be prised from the reluctant grasp of the British by the nationalists. It is a bit rich to oppress, torture, imprison, enslave, deport and proscribe a people for 200 years, and then take credit for the fact that they are democratic at the end of it.

A corollary of the argument that Britain gave India political unity and democracy is that it established the rule of law in the country. This was, in many ways, central to the British self-conception of imperial purpose; Kipling, that flatulent voice of Victorian imperialism, would wax eloquent on the noble duty to bring law to those without it. But British law had to be imposed upon an older and more complex civilization with its own legal culture, and the British used coercion and cruelty to get their way. And in the colonial era, the rule of law was not exactly impartial.

Crimes committed by whites against Indians attracted minimal punishment; an Englishman who shot dead his Indian servant got six months' jail time and a modest fine (then about 100 rupees), while an Indian convicted of attempted rape against an Englishwoman was sentenced to 20 years of rigorous imprisonment. In the entire two centuries of British rule, only three cases can be found of Englishmen executed for

murdering Indians, while the murders of thousands more at British hands went unpunished.

The death of an Indian at British hands was always an accident, and that of a Briton because of an Indian's actions always a capital crime. When a British master kicked an Indian servant in the stomach - a not uncommon form of conduct in those days - the Indian's resultant death from a ruptured spleen would be blamed on his having an enlarged spleen as a result of malaria. Punch wrote an entire ode to The Stout British Boot as the favoured instrument of keeping the natives in order.

Political dissidence was legally repressed through various acts, including a sedition law far more rigorous than its British equivalent. The penal code contained 49 articles on crimes relating to dissent against the state (and only 11 on crimes involving death).

Language and Culture

Of course the British did give India the English language, the benefits of which persist to this day. Or did they? The English language was not a deliberate gift to India, but again an instrument of colonialism, imparted to Indians only to facilitate the tasks of the English. In his notorious 1835 Minute on Education, Lord Macaulay articulated the classic reason for teaching English, but only to a small minority of Indians: "We must do our best to form a class who may be interpreters between us and the millions whom we govern; a class of persons, Indians in blood and color, but English in taste, in opinions, in morals and in intellect."

The language was taught to a few to serve as intermediaries between the rulers and the ruled. The British had no desire to educate the Indian masses, nor were they willing to budget for such an expense. That Indians seized the English language and turned it into an instrument for our own liberation - using it to express nationalist sentiments against the British - was to their credit, not by British design.

This is why Britain's historical amnesia about the rapacity of its rule in India is so deplorable. Recent years have seen the rise of what the scholar Paul Gilroy called "postcolonial melancholia", the yearning for the glories of Empire, with a 2014 YouGov poll finding 59% of respondents thought the British empire was "something to be proud of, and only 19% were "ashamed" of its misdeeds.

And, Certainly, it does not take much of a rigorous inquiry to conclude that under the garb of democracy, bureaucracy and railways were instruments with which the contours of a totalitarian regime were traced; while some mechanisms were meant to perpetuate the British in power, others were intended to satiate their imperial ambitions. No

wonder why the apologists are fond of quoting these advantages' in isolation from their context. For, once the context is established, this sandcastle of 'advantages' crumbles, unveiling an era riddled with murder, plunder and occupation.

The British Art of Colonialism in India: Subjugation and Division

The British Art of Colonialism in India: Subjugation and Division

Aziz Rahman, Mohsin Ali, and Saad Khan

India became a Crown colony in 1876, yet the origins of British colonialism can be traced back to 1757 when the British navy and merchants first arrived in India (Lyer, 2010). During the 1760s, the British acquired India from Mughal emperor (Baber, 1996, p. 110). The demise of the Mughal empire and the consolidation of British colonial power resulted from the intersection of internal and external, historical, conjectural, and structural factors (Baber, 1996; Condos, 2016; DeSousa, 2008).

Colonialism refers to “the conquest and control of other people’s lands and goods” the forceful seizure of local land and economy, and the reshuffling of noncapitalist economies to speed up European capitalism (Loomba, 1998, p. 20). Mercantilism and political and military control were the driving forces behind the British colonial expansion in the Indian subcontinent (Lloyd, 2008). Britain employed the military in territorial colonialism in India while it used maritime commercial colonialism in North America (Lloyd, 2008). According to Lloyd (2008), “The depth of the penetration of British culture varies widely from Ireland or the Caribbean through India to the virtual apartheid regimes of British Africa”

With India’s defeat on June 23, 1757, in the Battle of Plassey, the Indian subcontinent remained colonized under the British Empire for the next two hundred years. The British took two-thirds of the sub-continent under direct administration and achieved their economic and political objectives (DeSousa, 2008). In 1664, the British East India Company (EIC) competed with the French Compagnie des Indes Orientales and tackled the escalation of factional conflicts, wars of succession, and rivalries among the regional Indian powers (Baber, 1996, p. 119). The British took full control of Bengal after the 1757 Battle of Plassey and the 1764 Battle of Buxar, collecting revenues, and establishing its colonial domination in India (Baber, 1996, p. 123; Chatterjee, 1993, p. 284). After the 1857 mutiny, the British Crown established direct rule—giving up the policy of annexation, as a token of recognition to curry favour with some native states

during the mutiny. However, the colonial administration maintained its right to intervene in the internal affairs of those native states whose rulers were considered to be treacherous to the crown (Lyer, 2010). Under the treaties of accession, these native states joined Pakistan or India in 1948, and followed the same legal, administrative, and political systems as the colonial power. However, as history shows, the aftermath of accession is still felt to this day in the case of Balochistan and Kashmir.

With the 1784 India Act, Britain established direct involvement in India, initially through bringing EICs activities under the British Parliament's direct supervision. The 1813 Charter implemented full colonial administration and separate territorial and commercial jurisdictions for the EIC (Baber, 1996; Chaudhary, 2009). In the meantime, the EIC appointed the British ambassador, established permanent factories, and entrenched British settlements in India. Britain's colonial governments controlled 680 "princely states" or "native states" through hereditary local kings that constituted about 45 percent of the total area of British India (excluding Myanmar and Sindh) (Lyer, 2010, p. 610), with 23 percent of the total population (Lyer, 2010, p. 694). By co-ordinating its economic and political objectives, Britain ruled India—one of the largest colonies in terms of land and population (Stokes, 1973).

The British codified laws in India in terms of the rationalization of law in the Weberian sense to ensure "order," "certainty," and "uniformity" (DeSousa, 2008, p. 68), as well as Bentham's liberal ideas of the rule of law and equality principles (Kolsky, 2010). These laws, while giving a sense of uniformity to the rule of law, were also used against the local populace to suppress uprisings. The British abolished the Mughal Court and removed three-quarters of the warlord aristocracy. They eliminated many local feudal landowners and established a British-styled bureaucracy whose new aristocrats tended to follow a British life style. The British introduced the English language, its underlying culture, literature, and philosophy to strengthen its power base, as well as an elite class who were biologically Indians but culturally English.

This article discusses British colonialism in India with a specific focus on three interlocking areas: governance, education, and the law, as well as the legacy of British colonialism in Bangladesh, India, and Pakistan, by applying Johan Galtung's (1990) violence triangle framework. In each section, some cases or examples are used. The elements of the British colonial model applied by Britain to its former colonies include control over land, divide and rule, apartheid laws, ethnocentrism, education and language, religious suppression, native inferiority, depoliticization, and trauma and inward violence (Byrne, Clarke, & Rahman, 2018; Rahman, Clarke, & Byrne, 2017). From the common elements of the British colonial model, this article, however, focuses on

three elements: divide and rule, colonial education, and draconian law, since they are applicable to the colonization of the Indian subcontinent.

Violence, conflict, and peace are explored extensively by Galtung (1964, 1990, 1996). Each of these interlocking terms is conceptualized as a triangle that has been less explored in a postcolonial peacebuilding context. According to Galtung (1969, p. 168), "...violence is present when human beings are being influenced so that their actual somatic and mental realizations are below their potential realizations" (p. 168). Violence is "the cause of the difference between the potential and the actual, between what could have been and what is" (p. 168). Violence can take three forms: a) direct (physical violence that includes murder, assault, rape, torture, hate crimes, ethnic violence); b) structural (that results from the uneven distribution of resources caused by the structural mechanisms—social, political, and economic); and c) cultural (that includes religion, language, symbols, ideology, etc.) (Byrne & Senehi, 2012, pp. 34–36; Reimer, Schmitz, Janke, & Matyok, 2015, p. 24). Structural, cultural, and direct violence are intricately interrelated so that one form leads to another and vice versa (Byrne & Senehi, 2012, p. 3). Direct violence may be utilized to generate and perpetuate structural violence (Galtung & Fischer, 2013).

Cultural violence can be used to maintain and legitimize direct and structural violence (Galtung, 1990). Conflicts are mostly viewed from the lens of direct violence, overlooking indirect and invisible (structural and cultural) violence (Galtung, 1964). According to Galtung (1996), conflict is a triadic construct in terms of equally important aspects: attitudes (A), behaviours (B), and contradictions (C) (p. 71, 72). "The basic contradiction/content of the conflict lies in the verticality of the structure, the repression (of freedom) in the political case and exploitation (of well-being) in the economic case" (Galtung, 1996, p. 93).

Galtung's (1969) notion of peace has two sides: negative and positive (pp. 167, 183). He notes that "peace" is "absence of violence" (pp. 168, 183). The absence of personal or direct violence is negative peace, and the absence of structural violence or social injustice is positive peace or social justice (pp. 172, 183). Peace means the social goals agreed by many, if not most citizens, and that peace is attainable (p. 167). Consequently, as Byrne, Clarke, and Rahman (2018) state, "inclusive and just societies must explore their past and address the legacy of colonialism that continues to fuel and drive conflict" (p. 14). It is argued in this paper that the British sustained their colonial presence in India through the application of divide and rule policy, colonial education, and discriminatory laws promoting direct, structural, and cultural violence, as conceptualized by Galtung (1969, 1990). This paper further argues that this British colonial legacy impacting ethno-

racial and religious minorities requires positive peacebuilding in the post-colonial context.

Divide and Rule

The British used the strategy of “divide and rule” to provoke hostility between Hindus and Muslims. The divide and rule policy used religion to drive a wedge between Indians which eventually resulted in the death and displacement of millions of people, as well as the destruction of key economic assets (Lyer, 2010; Tharoor, 2017).

The British realized that India was a land of sociocultural diversity, and to exploit and control the lands, it was imperative to incite Hindus against Muslims and the masses against the princes, as well as provoking one caste against the other to augment caste divisions and class disparity among the Hindu community. For example, the British denied the legitimacy of the Muslim Sultan Tipu’s rule and used propaganda to violate the Hindu constitution around landed property (Baber, 1996, p. 127).

In the years following Britain’s victory in the Battle of Plassey, the British initiated policies that undermined India’s national cohesion and provoked communal division (Tharoor, 2017). In the 1857 mutiny, Hindu and Muslim soldiers were unified around loyalty to the Mughal prince, which worried the British rulers who devised policies and programs to fracture relationships between Muslims and Hindus. For example, the British ousted Muslims from power and they naturally were hostile to the British who favored Hindus, which further alienated Muslims. The colonizer’s policies were intended to purge Muslims from India’s sociopolitical landscape since they strongly protested and challenged British imperial rules. The divide and rule policy can also be traced to the English education policy that included Hindus while excluding Muslims. As a result, Muslims lagged behind, and the British took no steps to bring Muslims into economic parity.

This divide and rule strategy also surfaced in appeasing the Muslim community when the colonizer became wary of Congress’ popularity, because of the latter’s highly nationalistic undertones. The British knew it was critical that they develop a good relationship with Muslims if the influence of the Indian National Congress was to be countered. Hence, the British reached out to Syed Ahmed Khan, who was later knighted and who believed that co-operation with the

British would benefit Muslims more than forging an alliance with Hindus in national agitation (Lewis, 1962). Britain’s anti-Muslim attitudes waned in favour of initiating anti-Hindu policies.

Another example of the policy of divide and rule was the 1905 partition of Bengal which sought to suppress the spirit of the progressive intellectuals of Bengal (Asiatic Society of Bangladesh, 2003). The partition was an astute project intended to drive a wedge between Hindus and Muslims and stifle their national movement (Lewis, 1962). The British rulers tried to destroy Bengal's integration through its partition by separating the largely Muslim eastern areas from the largely Hindu western areas to undermine people's unity. The British objective was to rule and exploit people, but Lord Curzon viewed it as a policy to promote his administrative efficiency (Asiatic Society of Bangladesh, 2003).

The scars of the divide and rule policy are still evident in modern day India, Pakistan, and Bangladesh. The Hindu-Muslim hostility, spawned by the divide and rule policy, is still prevalent in these countries. The antagonism often takes a serious form that contributes to marginalizing Muslims in India and Hindus in Pakistan and Bangladesh. As such, Hindus and Muslims view each other with suspicion and feel discomfort in co-existing as they did for years before the advent of the British. Hindus do not feel safe and secure in Bangladesh, so they migrate to India. As a result, the Hindu population is declining in the country. According to the 1951 census report, Hindus were 22 percent of the population in Bangladesh; by 1974, this figure declined to 14 percent, and the last 2011 census records only 8.4 percent Hindus living in Bangladesh (Trivedi, 2016). This gradual declining figure suggests that Hindus migrate to India for a safer and better life. Hindus also leave Pakistan for India because of a lack of security, among other things. Like Hindus of Bangladesh and Pakistan, Muslims as a minority group are often persecuted and victimized in India. In recent years, Muslims have often been harassed and tortured and sometimes even lynched by radical Hindus on the suspicion of indulging in selling or buying beef (Chatterji & Babu, 2017; Suri, 2015). However, while the legacy of British colonialism in the form of divide and rule still exists, to hold the British solely responsible for present day affairs in the Indian sub-continent would be unfair. Politicians in India, Pakistan, and Bangladesh have used religion to fan the flames of hostility and to garner votes, a policy which has had disastrous consequences for the region.

The legacy of British colonialism continues implanting divide and rule policies against ethnic and religious minorities in post-colonial India today. In Bangladesh, ethnic violence in the Chittagong Hill-Tracts (CHTs) can now be briefly explored to demonstrate postcolonial violence in Galtung's terms. The CHT has been the home of over eleven Indigenous communities who have been living there from at least the fifteenth century onwards (Adnan, 2004; Chakma, 2010; Levene, 1999; Schendel, 1992; Schendel, Mey, & Dewan, 2000) The tribalism policy of the British colonizers divided the people of the CHT into tribal/hill people (paharis) and the Bengalis, to ensure political control (divide

and rule policy) and for economic exploitation of environmental resources, such as forests. The Pakistani and Bangladeshi governments have inherited a similar colonial mindset by continuation of land-grabbing, displacement, and imposed dominant education and language on CHT Indigenous communities (Adnan & Dastidar, 2011; Chakma, 2010; IWGIA, 2012; Rahman, 2015, 2017; Schendel et al., 2000). The hilly Jumma (Indigenous) nation has experienced rape, arson, assault, kidnapping, and hate violence, as well as military violence (Adnan, 2004; Chakma, 2010; Rahman, 2015). This is direct violence by Bengali settlers and the state against the Indigenous people. Many view the communal riots, rape, murder, and arson attacks as a mechanism for pressuring Indigenous families and communities to leave their traditional land (Chakma, 2010). Postcolonial economic and development policies, such as the Kapati Electric Dam, the massive demographic and Bengali resettlement scheme, illegal or forceful land-grabbing, forced displacement for infrastructure projects, and the imposition of dominant education and language on CHT Indigenous Peoples, affect their land rights, traditional practices, and cultures across indigenous communities in the CHT (Chowdhury, 2008, 2014; R. Datta, 2015; IWGIA, 2012; Partha, 2016; Rahman, 2015, 2017). These political and economic measures and structures create and perpetuate structural and cultural violence among the CHT peoples. Postcolonial nation-building and assimilation policies have not addressed their needs and welfare including the recognition of the cultural rights and identity needs of the Jumma nation (Adnan, 2004; Chakma, 2010; R. C. Roy, 2000). The Bengali settlers have changed the original Indigenous names of localities/settlements and disturbed the Jumma people's celebration of religious and cultural festivals/rituals as a result of the resettlement schemes (Partha, 2016; Schendel et al., 2000). These are examples of structural and cultural violence that led the CHT peoples to resort to armed insurgency.

The Government's 1997 peace treaty with the CHT peoples appears to be cosmetic as it has failed to make any significant progress in resolving the land disputes, their rights to selfrecognition and cultural identity as adibhasi (Indigenous people). (Bashar, 2011; Dowlah, 2013; P. Roy, 2016; The Daily Star, 2016). For example, after almost two decades of the peace accord, only 26 out of 72 clauses are implemented; the government has not made necessary laws to effect the rest of the clauses (P. Roy, 2016). The invisible and enduring structural and cultural violence has been continued through the Bengali resettlement politics, the non-withdrawal of security forces, and the establishment of infrastructures for economic, religious, and political purposes in the CHT (IWGIA, 2012; Larma, 2016; Rahman, 2015, 2017).

Colonial Education in India

Education in a country is closely related to its culture, as it provides “intergenerational knowledge transfer” (McGregor, 2010, p. 9). Prior to the British arrival, India’s education system was small in scale but well organized with Muslim children being schooled in madrasas and maktabas, and Hindu children being taught in pathshalas and tols. These institutions taught children Arabic, Persian, Sanskrit, theology, grammar, logic, law, mathematics, metaphysics, medicine, and astrology (Chopra, Puri, & Das, 2003; Nurullah & Naik, 1943). The British government, however, ignored this faith-based education system and replaced it with a British system—an action that affirms a colonial motive the British government intended to fulfill by introducing English education into India.

Initially, however, the British showed no interest in education and religious affairs of India (Chopra et al., 2003). The British believed that any interference in Indian education and religious matters might endanger its political and commercial enterprise (K. K. Datta, 1975), and in order to ensure its domination and control of India and to keep Hindus and Muslims quiescent, the British founded madrasas and colleges to provide an oriental education within the relevant cultural framework of the country. The founding of Alia Madrasa in 1780 by Warren Hastings (Governor-General from 1772 to 1785), and Sanskrit College in 1823 by Lord Amherst (Governor-General from 1823 to 1828) are two such examples. To advance oriental studies, Governor-General Lord Wellesley founded Lord Fort William College in 1800 so that English officials could learn local languages (Chopra et al., 2003).

British Liberals and Evangelicals, however, demanded the introduction of British education with English as the medium of instruction. The British formed a Committee of Public Instruction, which was composed of two opposing groups, namely the Anglicists and Orientalists. The Anglicists argued in favor of British education by denigrating indigenous education, while the Orientalists argued in favor of indigenous education. Thomas Babington Macaulay—an influential member of the Governor-General’s Council—recommended introducing English education and the following comment made by Macaulay (1965) indicates the colonial enterprise of Britain:

We must at present do our best to form a class who may be interpreters between us and the millions whom we govern; a class of persons, Indian in blood and colour, but English in taste, in opinions, in morals, and in intellect. To that class, we may leave it to refine the vernacular dialects of the country, to enrich those dialects with terms of science borrowed from the Western nomenclature, and to render them by degrees’ fit vehicles for conveying knowledge to the great mass of the population.

Based on Macaulay's recommendation, Lord William Bentinck (Governor-General from 1833 to 1835) introduced British education in India on March 7, 1835, and devised a filtration model of education, according to which English education was first imparted to the upper classes from whom it would then filter down to the masses (Chopra et al., 2003). Sir Charles Wood, the President of the Board of Council, who drafted a report that provided for a comprehensive education system, followed Macaulay. The report recommended that English should be the medium of instruction for higher education, and local vernaculars remain the medium of instruction in schools. The report also recommended the founding of universities in Kolkata, Bombay, and Madras as teachers' training colleges, and grade schools—elementary schools, middle schools, and high schools. To implement the recommendations, universities were founded in Kolkata, Bombay, and Madras, and English was introduced as a medium of instruction in the Indian sub-continent's higher education system.

Introducing a British-styled curriculum did not impact the lives of most Indians as the new system failed to bring about qualitative changes in the educational system, since the curriculum in this English model pushed learners into rote memorization (Whitehead, 2005). The same was also true for madrasas and pathshalas which did not encourage students to question and share their views. Moreover, English education was not universal as it was designed only for the Indian and British elites, and individuals from humbler backgrounds did not come under the purview of this education project. People who received English education viewed themselves as superior as compared to those who were not educated under this system, and as such, the education system divided people into two classes: a class which received a British education and a class which was deprived of that education. Consequently, this education system encouraged class distinction and engendered antagonism among India's natives, thus weakening cohesion and contributing toward fulfilling the British vision of domination and exploitation. The introduction of English education in India was a key component of Britain's divide and rule policy for engendering hostility and creating divisions among the natives.

The English education system introduced by the British lacked uniformity and homogeneity, which left far reaching effects. For example, the British rulers introduced an English educational system in India, but they did not abolish the traditional madrasa educational system—resulting in the creation of a dual education system. The sustainment of a dual education system continues to engender unrest and tension in educational institutions to this day.

For instance, the students studying in mainstream educational institutions view themselves to be better than those studying in madrasas. On the other hand, the

students of madrasas claim that they have better knowledge about theology and logic than those studying in mainstream institutions. Thus, students of both streams treat each other with suspicion, hostility, and antagonism. Records indicate that madrasa students are more hostile and are more vulnerable to violent radicalization. While madrasas have existed for centuries, many argue that these seminaries are breeding grounds for militancy and radicalization (Rahman, 2016b; Rahman & Kashem, 2011; Riaz, 2008a, 2008b). The study of Ahmed (2009) shows that the madrasa students, indoctrinated with jihadi ideology during Zia-ul-Haq's time, were sent to Afghanistan to fight against Soviet occupiers. The study also reveals that the University of Nebraska-Omaha developed and designed textbooks to inspire and justify the "holy war" against the Soviets.

Radicalization of madrasa students is, therefore, manufactured and manipulated. Radicalization and extremism among youths with non-mainstream education are complex and multidimensional, and the underlying issues of, risk factors for, and pathways to, violent extremism among youths in Bangladesh need empirical research (Rahman, 2016a, 2018b; Riaz & Bastian, 2011). The radicalization of madrasa students came to the attention of law enforcement and scholars during 2005-2006 (Rahman, 2016b; Riaz, 2008b), and the students with private university and English medium schools have been found radicalized afterwards (Rahman, 2016b, 2018b; Riaz, 2016). Students of non-mainstream schools (madrasas and private university/English medium schools) fall victim to radicalization (Rahman, 2016b, 2018b, Riaz, 2008b, 2016). The existing discourses suggest that madrasa students with poor economic background are more likely to be easily radicalized (BEI, 2011; Rahman, 2016b; Rahman & Kashem, 2011; Riaz, 2008b, 2016). On the other hand, private university and/or English medium students from economically solvent families keep themselves aloof from traditional social life, and are more engaged in internet and social media that can easily recruit and purchase them for terrorist activities. Moreover, it should also be noted that graduates with mainstream education background (Bengali) are rarely radicalized and involved in terrorist activities (Rahman, 2016b; Riaz, 2008b). This different trend stems from mainstream education based on indigenous cultural values as compared to the non-mainstream education system that impedes students from being apart of society. Division and discrimination in education systems contribute to generating radicalism and extremism (Rahman & Kashem, 2011; Riaz, 2008b).

To further note, most employers prefer general (Bengali medium) and English medium students to madrasa students, and thus, the society sustains structural inequality. Remarkably, students of these two streams of institutions have a close similarity in a point: English medium students trained in the English education system advocate western values more than national values, and madrasa students trained in theology

practice and plead Islamic values. Thus, they keep apart from each other and cannot unify with mainstream students. These employer perceptions, stereotypes, and negative attitudes of the mainstream society towards madrasa education, indicate the persistence of structural and cultural violence against students and graduates with non-mainstream graduates. The student community of the former British colony—India, Pakistan, and Bangladesh—have been experiencing this triadic division. As the students of the two non-mainstreams are not formally trained in national values, cultures, and traditions, they are less careful about nation and country—a tendency that leads them to radicalization and terrorism. Some key informant interviews suggest the negative attitudes of society toward madrasa education and the unfair treatment by employers who often decline to hire madrasa graduates lacking adequate skills compared to mainstream students (Rahman & Kashem, 2011). The profile of Islamist terrorists in Bangladesh indicates largely non-mainstream educational backgrounds (Rahman, 2016b; Riaz, 2016). To specify, on July 1, 2016, six youths attacked Holey Artisan Bakery (a bakery shop located in Dhaka), where they killed 29 innocent people, including 20 hostages (18 were foreigners), two police officers, and two staff (Fair & Abdallah, 2017, p. 3). Of the six terrorists, five were identified as private university students with English medium education backgrounds, and the last was schooled in a madrasa.

From the viewpoint of justice, Britain's education policy in India was not only an instrument of domination but also a weapon of oppression meted out to Indians. This education system can be compared to the banking education model (Freire, 2012), where education is viewed as a process that deposits knowledge into students. Teachers are the supreme authority in this system while students' pre-existing knowledge is ignored (Freire, 2012). "The more completely they accept the passive role imposed on them, the more they tend simply to adapt to the world as it is and to the fragmented view of reality deposited in them" (Freire, 2012, p. 73). Similarly, the British colonizers imparted British education, science, and philosophy to Indian learners. This indoctrination and oppression imposed on the colonized as an "undue strain inflicted upon pupils" who felt difficulty in expressing their ideas in English (Sundaram, 1946, p. 518).

An effective education must ensure the consent and participation of learners, teachers, and administrators. The British ignored this issue and did not research what students wanted from their education. The British viewed their system of education as superior, and to make superior Indian citizens, they introduced the Western education system to them. This model manufactured skilled clerks who helped the colonizer to collect revenue. Moreover, this new system of education destroyed local cultures and stifled people's political consciousness (DeSousa, 2008).

From a practical point of view, the British taught the Indian elite the English language to get services and benefits from them. By providing British education and culture, and the English language to the Indian elite and the masses, the British made them produce goods for European markets and also consume European goods (Pennycook, 1988). British education was for profit for the colonizers. This kind of profit mongering is reflected in Shakespeare's (1623) play *The Tempest*, where the colonizer Prospero confesses to Miranda that he (Prospero) must not disown Caliban: "We cannot miss him; he does make our fire, fetch in our wood, and serves in offices, that profit us..." (1.2.312-14). To explain, Caliban is one of the major characters in this play whose inherited island is usurped by colonizer Prospero who enslaves and uses him for his colonial enterprise. Like Prospero, the British colonizers made Indians Shakespeare's Calibans from whom they would get profit, cheap labor, and information about the wealth of India.

However, it can also be argued that learning the English language can be viewed from an empowerment perspective. The British taught Indians Western knowledge and the English language, which eventually enabled them to be aware of their rights. It can be argued that, enriched with the power of knowledge from Western education, the Indians began to think of their freedom. They spoke about their independence, reclaimed their land, and finally after ninety years of complete British rule, they succeeded in taking back their land from the colonial masters.

In British India, the colonial education policy imposed English upon the local populace, subjugated local languages, and even created a buffer class to serve the colonists. This language subjugation is an integral component of the colonial power's structural and cultural violence as viewed by Galtung (1969, 1990) that still exists and affects the Indigenous communities in the Chittagong Hill Tracts (CHT) of Bangladesh. The dominant language (Bengali) was imposed by the state on the Indigenous people in Bangladesh. Indigenous languages are not recognized, and the Indigenous people's language rights to this day are not protected despite their demands for having mother tongue education and recognition in their schools (Partha, 2016; Yasmin, 2014). The same applies to ethnic and religious minorities in India and Pakistan, where to this day English is the official language in a majority of educational institutions and in the judicial system (Mahboob, 2017).

The British Raj and the Law

"The foundation of our empire in India rests on the principle of justice, and England retains its supremacy in India mainly by justice. Without justice we could not hold India for a moment" (Kolsky, 2010, p. 1). This section examines the legal system constructed

by the British Raj to govern the Indian subcontinent. Laws used by the British to further their own interests are also examined and finally the impact of the “legal” colonial legacy is explored.

To begin, the codified English law administered by the courts was initially applied only to Europeans residing in the sub-continent. However, by 1773 it was proposed that in matters of marriage, inheritance, and other individual affairs, Islamic laws should be applied to Muslims, and Hindu laws to Hindus (Otter, 2012). While it is not clear whether this bifurcation of the law was proposed to introduce the policy of divide and rule, it had long lasting impacts that ultimately led to the division of the sub-continent based on religion. During the initial 150 years of the British Raj, the colonial masters deferred to Indigenous and local laws for the resolution of disputes (Giunchi, 2010), even though at that stage Islamic law was applied to Muslims and Hindu Law to Hindus. This application of religious laws was convenient for the British, since unlike some other British colonies, the Indian sub-continent already had codified religious decisions such as the Fatawa-e-Alamigiri (The Edicts of Emperor Alamgir), which could be relied upon by judges. Moreover, during this period, anything that was indigenous and local was romanticized, including religious texts and laws. To achieve the colonizer’s goals, key religious texts such as the Fatawa and the Hedaya for Muslims, and the Dharma Sastra for Hindus were translated into English by William Jones, Neil Baillie, and Nathaniel Brassy Halhead, respectively (Giunchi, 2010).

This idealization of Indigenous Indian customs and laws was, however, short lived. For instance, the British philosopher James Mill considered Indigenous Indian laws to be “a disorderly compilation of loose, vague, stupid, or unintelligible quotations and maxims selected arbitrarily from book of law, book of devotion, and books of poetry; attended with a commentary which only adds to the absurdity and darkness; a farrago by which nothing is defined, nothing established” (Judd, 2004, p. 38).

The reason for the eventual disillusionment of the British with Indigenous religious laws was a result of their attempts to categorize the monolithic, fluid, and diverse religious identities within both Hinduism and Islam. For example, Islam can be broadly divided into two major sects: Sunni’ism and Shi’ism. In Sunni’ism itself, there are four different schools of thought, with each school of thought having its own sub-school. Hence, trying to lump the diversity of opinions produced by these scholars into one, single, uniform code would logically entail a failure of the system.

There is another way this change in attitude can, however, be looked at in a manner which is less judgmental of the British. Replacement of religious law with Western positivist law in the public sphere could have stemmed from the desire of the British to

legitimize their rule over the sub-continent and to appear to be more accountable to the native population (Judd, 2004). For example, the codified law would turn the colonizers into “the prisoner of their own rhetoric,” which presumably was meant to create a “feel good effect” amongst the colonizer (Kolsky, 2010, p. 72). However, detractors of the “benign” colonization argument view the subcontinent as a laboratory for the British to experiment with their legal test-tubes before implementing them in Britain (Giunchi, 2010; Kolsky, 2010; Otter, 2012).

After the failed 1857 rebellion, the 1858 British India Act was introduced, which transferred the power to rule from the EIC to the British Crown directly. Moreover, a Secretary of State for India was established, who would be counselled by a 15-member council (Judd, 2004). This was the first of many steps that would lead to a complete and formal control of the Crown over its Indian subjects.

The eventual British disdain for all Indigenous religious laws led to a complete purge of religion from criminal law and a partial purge from civil law. For example, in 1860 the Indian sub-continent was given a new set of laws, the Indian Penal Code. Among other things, the code outlawed adultery, fornication, and struck down corporal punishment for women in cases of adultery (Giunchi, 2010); all of these provisions were part of Shariah law. In addition, the British continued to treat women paternalistically by using the law. Section 506 (i) of the Indian Penal Code provided a jail term for up to three years for:

Whoever, (i) intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, or that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman. (The Indian Penal Code, 1860, s. 506 (i))

The provision is still part of the penal code of Bangladesh, India, and Pakistan that may be seen as either a sign of times or as a tool to emasculate men by elevating the status of women and placing them on a pedestal. However, as Justice Willy Brennan once aptly pointed out, “Our nation had had a long and unfortunate history of sex discrimination. Traditionally, such discrimination was rationalized by an attitude of romantic paternalism, which in practical effect put women not on a pedestal, but in a cage” (Frontiero v. Richardson, 411 U.S. 677, 1973).

The key change, in the context of the laws came in 1862 with the enactment of the Code of Criminal Procedure. The Code prohibited Indian judges from issuing arrest warrants or indicting European or British individuals for crimes (Kolsky, 2010). Moreover, the code provided that only British born judges could try the cases of British

born accused persons, and where the alleged crime carried the death penalty, the accused had the right to be tried by a jury, half of whom would consist of British-born persons (Kolsky, 2010). This was, indeed, quite the digression from the implementation of the “principle of justice” as was initially proclaimed by the British when they colonized India.

During 1900-1947, British “illegal laws” governed the Indians. By the turn of the century, it became clear that the British had adopted a carrot and stick policy as a tool of governance. On the one hand, they created the Indian Civil Services by which they would control the Indians through Indians by appointing educated locals in the bureaucracy. On the other hand, the British were quite ruthless when it came to legislation and crimes. For instance, the 1901 Frontier Crimes Regulation (FCR) contended that individuals convicted of certain crimes, such as homosexuality, could be whipped; the jurisdiction of civil courts was barred; a whole tribe could be held responsible for the acts of an individual (their properties could be seized and demolished) and whole villages could be found accountable collectively (Ss. 6, 10, 21, 22, Frontier Crime Regulations 1901). The FCR was not the only draconian law enacted by the colonial masters. The Indian Press Act, for example, outlawed any publications which aimed to “bring into hatred or contempt his Majesty or the Government established by law in British India or the administration of justice in British India or any Native Prince or chief under the suzerainty of his Majesty...” (s. 4(1)(c) The Indian Press Act, 1910). As Otter (2012) points out, curtailment of civil liberties did not just stop with restrictions on the press. For instance, under the Prevention of Seditious Meetings Act, a district magistrate was given power to prohibit any public meeting: “...if, in his opinion, such meeting is likely to promote sedition or disaffection or to cause a disturbance of the public tranquillity” (s. 5, Prevention of Seditious Meetings Act, 1911). This legacy of the British Raj is still present in Pakistan wherein the government has the right to outlaw a public gathering of more than four individuals (S.144, Code of Criminal Procedure, 1898) and to subject speech:

...to any reasonable restrictions imposed by law in the interest of the glory of Islam or the integrity, security or defence of Pakistan or any part thereof, friendly relations with foreign States, public order, decency or morality, or in relation to contempt of court.

These laws are still operative even after seven decades of independence in these countries for political reasons or to oppress opponents/ dissidents.

While the British were repressing free speech and expression, they were also leaning toward power-sharing with the locals. Under the 1908-1909 Reforms Act, commonly known as the Minto-Morley reforms, Indians would be elected to the legislative

councils, both in the capital and in the provinces. While the reforms did reserve power at the center for people nominated by the crown, they enabled the provinces to elect natives who would be in the majority (James, 1997). The reforms also gave Muslims the right to a separate electorate.

Whether this move was meant to exacerbate the divide between Muslims and non-Muslims, or whether it was an effort to recognize the demand of the All India Muslim League for a separate electorate, remains open to interpretation.

The watershed moment of draconian legislation leading to massive violence and the ultimate victory of the wretched of India can be traced back to the two Rowlatt Acts of 1918 and 1919, respectively. After WWI, the British, keeping in line with their earlier attitude towards free speech and assembly, enacted laws that enabled an accused person to be arrested without a warrant, detained indefinitely, and not allowed to confront her/his accuser(s) (Vohra, 2002). This law was arguably passed to suppress Gandhi's satyagraha movement and the Khilafat

Movement. The recently enacted stricter laws didn't prevent people from protesting and eventually on April 13, 1919, the worst attack by British law enforcement on unarmed protestors occurred. A group of roughly 10,000 protestors were protesting in Jallianwala Bagh, and on the orders of the officer commanding, General Dyer, the walls of the garden were locked and the British Indian Army opened fire on unarmed citizens leading to the deaths of almost 400 people (Judd, 2004, pp. 131–132). The Jallianwala Bagh massacre eventually resulted in weakening the British position in India and arguably, it led to the enactment of the 1935 Government of India Act, which provided that provincial powers would be devolved to the elected legislatures, and the provinces could function autonomously. However, London still had the final word when it came to federal affairs (Judd, 2004).

The importance of the 1935 Government of India Act cannot be overemphasized. The 1937 elections held under the new Act resulted in a sweeping victory for the Indian National Congress, which alarmed the Muslim League as it had presumed that even if the British left, they would be replaced by a Hindu tyranny (Judd, 2004, p. 149). Moreover, the Act was the de facto Constitution in the newly formed state of Pakistan, and even after Pakistan enacted its own Constitution, many features of the Government of India Act were included in it. Both Pakistan and India followed the Westminster model of democracy as set out in the 1935 Act, but amended it to suit their own interests. For instance, both newly formed nation states were highly centralized, and the provinces were not granted powers for many years (Otter, 2012).

Several civil and procedural laws were enacted during the next decade so that the usual legal battles were over the devolution of powers in the Indian sub-continent, a tool employed by the British to hold onto the region. The most important of these plans was introduced in 1946 by the considerably weakened Raj and is known as the Cabinet Mission, headed by Sir Stafford Cripps. He proposed that India would remain united in the form of an All-Indian Union that would be divided into three provincial governments: Bombay, Central Provinces, Madras, Orissa and the United Provinces predominantly populated by Hindus. The second cluster included Muslim majority regions such as Baluchistan, Khyber-Pukhtunkhwah, Punjab and Sindh. The final cluster included Bengal and Assam. While the provinces could not secede from the Union, they had the liberty to enact their own constitutions. The clusters along with the princely states could also elect a constituent assembly (James, 1997). While the Muslim League agreed to the plan, Nehru and the Indian National Congress rejected it, reinforcing the League's belief that Hindus would never be willing to share power with Muslims. Eventually, a year later, two independent nation states, India and Pakistan, joined the comity of nations.

While there is no doubt that the introduction of British positivist law changed the future of the Indian sub-continent, the legal legacy of the British Raj can be viewed both negatively and positively. On the negative side, it can be argued that by introducing Western law, the British destroyed the quasi-legal practices of native Indians that provided swift justice, which was acceptable to the local population. That system was replaced by a highly bureaucratic system that was mired in red tape. The counter to this argument is that those Indigenous systems/practices were at times unfair, especially when it came to women; the Jirga system and Wani are two such examples. Moreover, the laws introduced by British were flawed, yet they ultimately wrested power from the hands of the ruling monarchs. Furthermore, democracy on the subcontinent may be a flawed system, yet it was because of the Raj, and its legacy, that some 1.5 billion people can cast their votes to elect individuals who can represent their interests. Moreover, the banning of the Sati custom, the permit of widow marriage, and the passage of the 1910 Child Act that fixed the age of majority as 18, are some steps that deserve credit. While it can rightly be argued that the process of divide and rule continues to haunt the region for decades and has resulted in the deaths of hundreds of thousands of people, it is also true that the "rule of law," which is a legacy of the Raj, provides a modicum of security to individuals in establishing their justiciable and non-justiciable rights. Seen through this lens, the introduction of positivist law in the Indian subcontinent, whatever its intentions may have been, can be perceived as beneficial to the people in the long run.

As illustrated earlier, many of the British laws are draconian and apartheid, and were against the will of the natives of India. The 1862 Code of Criminal Procedure separated jurisdictions of judges along racial lines. The FCR, the Indian Press Act, The Prevention of Seditious Meetings Act, the Rowlatt Act, the Public Safety Bill, and the Trade Dispute Bill were used to suppress and discipline Indians by the British, and their fellow Indians by elite Indians (DeSousa, 2008; Kolsky, 2010). These laws and legal structures provided vast powers to the rulers that fueled direct violence and perpetuated structural violence against Indian natives. The legacy of these colonial discriminatory laws has been present in today's criminal justice system.

Bangladesh still inherits the penal code, criminal procedure code, police code, jail code, and evidence act, which were introduced by the British Raj (Khondaker, Kashem, & Rahman, 2018; Rahman, 2011; Rahman & Hossain, 2014; Senese & Kashem, 1997). After seventy years of independence, the rulers today perceive those systems to be useful tools in suppressing their own people, and these laws and legal structures have promoted both structural violence and direct violence as conceptualized by Galtung.

The United Nations Development Program (UNDP) has implemented a police reform project and facilitated the government's use of a draft ordinance during the non-party interim government in 2007 (Patil, 2012; Rahman, 2018a; UNDP Bangladesh, 2018). Yet no legislation has been enacted because of the resistance of the political elites, as they want to use the colonial law to oppress dissents and govern the people with immunity and impunity (Khondaker et al., 2018; Patil, 2012; Rahman, 2011, 2016b, 2018a; Rahman & Hossain, 2014). Finally, while the legacy of British colonialism under the guise of the law continues to haunt the Indian subcontinent, ultimately the responsibility to enact new laws that cater to the needs of indigenous people lies with the elected representatives of Bangladesh, India, and Pakistan.

Conclusion

Prior to British colonialism, previous conquerors could not control India completely. (Stokes, 1973). However, within four years of the Plassey Battle, the British conquest unprecedentedly broke Indian social structures, basic institutions, and the self-sufficient village system. The consequences of the Battle of Plassey influenced the rule and the modes of the British cultural contact in the subcontinent. According to Stokes (1973), "The peculiar multicellular character of Indian society made it both highly resistant to change in its social and cultural aspects and ipso facto subject to constant political change and to conquest from within highly resistant to change" (Stokes, 1973, p. 122).

In the post-colonial period (1956-1987), British areas were found to have higher levels of investments in agriculture and production, but lower levels of investments in schools, roads, canals, and health centers (Lyer, 2010). The public goods in terms of the access to schools, health centers, and roads was minimal in areas that experienced British direct rule because of the heavy taxation and extraction of resources. Poor policies were installed in areas remote to the colonizers. On the other hand, areas that experienced indirect rule exhibited opposite developments. Native rulers had longer tenure to invest in public goods provision, than British administrators (Lyer, 2010). The native rulers' families played an important role in post-colonial politics by manipulating elections and controlling resources.

The British used India to supply raw materials and provide a rich market for Britain. The Permanent Settlement Act introduced in India undermined the land ownership of the peasants. British colonizers forced Indian cultivators to provide goods for export to Britain and the new railway system, and whilst being beneficial to the local population, it also served the economic interests of the colonial power (Das, 2011; Tharoor, 2017). Famines were deliberately created by the colonizers who forced the Indigenous population to seek relief work, such as road-building, so that goods could be transported from factories to ports and shipped to Britain (Tharoor 2017; Lazzaro, 2013).

The formulation of Anglo-Indian law toward having a unified and predictable modern legal system was meant to regulate economic, political, and social relations between individuals and groups. However, the British justified their codification of laws in India to show that they would guarantee the rule of law and justice, yet in reality, those laws were also used to discriminate between Indians and Europeans (DeSousa, 2008; Kolsky, 2005). The "Legal" legacy of the British Raj continues in India, Pakistan, and Bangladesh today. The Police Act, the Evidence Act, the Penal Code, the Jail Code, and many other laws have been inherited from the British (Khondaker et al., 2018; Rahman, 2011; Rahman & Hossain, 2014). While the Indian sub-continent has been independent for seventy years, the continued existence of these laws may depict the utility that sub-continental rulers may find in using them to govern their populations.

The British introduced Western education, the English language and culture, literature, and philosophy to strengthen their power in India. The British demonized Indians, viewing the natives as "incapable of understanding what was in their best interests" (DeSousa, 2008, p. 10).

They succeeded in creating an elite class that worked for the British and helped prolong colonial rule, and they provided a legacy that survives to this very day.

Unlike other colonies such as Canada, British rule in the Indian sub-continent can be viewed as being somewhat beneficial to the local populace, particularly in the fields of education and law. Learning the English language empowered the native population, and local elites (zaminders/babus) were very happy about this system. The positive “side effects” of British colonial rule also deserve appreciation for bringing about an impressive awakening in cultural, social, and scientific fields in India in the late 19th and mid-20th centuries. The colonial measures addressing Sati, widow remarriage, infanticide, witchcraft, child marriage, polygamy, and dowry had some remarkable effects. Because of social movements and significant roles played by individuals like Raja Ram Mohan Roy, many of these superstitions and iniquitous practices were removed from the society.

In India, the British colonizers faced several resistance and nationalist movements. Britain established institutions to justify and secure colonial rule, and used force to curb any challenges to its rule (Condos, 2016; DeSousa, 2008). Ultimately, these repressive measures empowered Gandhi’s nonviolent resistance against the British, which culminated in their departure in 1947, as divide and rule became divide and depart.

Despite some positive social transformative steps, the British policy of divide and rule fueled and nurtured conflict in the Kashmir valley, the port city of Karachi between Mohajirs and other ethnicities, and the Rohingya and Bihari ethnic conflicts in Bangladesh. These conflicts are a legacy of British colonialism that have claimed many lives and abused the human rights of hundreds of thousands of innocent people in the Indian subcontinent. Given the direct, structural, and cultural violence of colonial policies of divide and rule, education, and laws, the postcolonial states must not sustain the legacy of British colonial policy of forced assimilation, division, and subjugation by imposing the dominant language, religion, and culture against ethnic and religious minorities. For example, state policies in the CHT in the name of development, security, and environmental conservation must not create, and promote structural and cultural violence against the Indigenous communities. Positive peacebuilding approaches are imperative for addressing the ongoing religious divide and regional conflicts in Kashmir valley, Arakan State of Myanmar, and the Chittagong Hill Tracts (CHT) of Bangladesh, by granting the right of self-determination to the natives of this region.

Week 2: 1857 - War of Independence

The Revolt of 1857 as the First War of India's Independence

Introduction

The British rule in India began after the Battle of Plassey in A.D 1757. Within one hundred years a mere trading company emerged as a mighty political force. After a hundred years a mighty popular revolt broke out in 1857. It was the Indians who challenged against the British rule and attempted to put an end to it in 1857. The attempt has been called the First War of Indian Independence by most of the nationalist historians because a hundred years of the British rule had brought misery to the Indians i.e. the politically, socially, religiously, economically etc. India was divided into many small states by the English and frame many illegal laws and thereby annexed most of the states one by one. It created dissatisfaction among the Indian rulers and large numbers of the Indians those who were in the services in native the states. Economically too Indian people became poorer day by day. The English imposed heavy taxes on land revenue, Indians handicraft were destroyed and foreign trade was monopolized by the English. Even on the basis of merits Indian could not be appointed on high post as English were suspicious of them. Not only this, the English always degraded the Indian social status. According to them Indians were inferior race, "half guerilla half Negro" and uncivilized race of world. They did not permit the Indians to take part in their social activities and did not allowed to enter the waiting rooms, railway carriages and into the parks. Religiously the English were determined to convert the Indians into Christianity and militarily too, the English neglected the Indian soldiers. Indian soldiers required to do odd and hard jobs but were poorly paid. Therefore this outbreak of 1857 was in reality a product of accumulated grievances of the people against the company's administration. Popular discontent had been gaining strength among the different sections of Indian society. It was this discontent which burst forth into a mighty popular movement. "All class of people irrespective of the consideration of caste, creed or religion joined in this war" [Das:1998:19]. The peasants, merchants, artisans and soldiers fought bravely against the foreign government and their sacrifice constituted a brilliant chapter in the pages of Indian history.

Mangal Pandey hoisted the flag of rebellion on 29th March 1857. It became a full-fledged war when the military forces of Meerut cantonment raised the standard of rebellion on May 10, 1857 and the sky was rent with cries of "Delhi Chalo," "Maro Firangi Ko," Anyhow, it become a prelude to the long drama of the epoch making freedom movement that was to unfold in 1885 A.D. The causes of the revolt are to be found in

those hundred years of the British rule to which the greased cartridges were the proverbial ignition which set the whole mine ablaze. In fact, the greased cartridges were merely the match that exploded the mine which had, owing to a number of causes been for a long time preparing. However, the resentment of the Indians found expression in number of insurrections from time to time in different parts of the country like the Kol Insurrection of 1831-33, the Santhal rising of 1855-56 and many others. Various sections of population felt suffocated under the tyranny of the foreign rulers, so they tried to free themselves from foreign yoke. Freedom from foreign domination has been the yearning of all civilized people in every age of India and the Indian people were no exception to it. So they raised the standard of the revolt against the British rule in 1857. According to S.B. Chaudhuri the revolt was widespread and deep seated socially and that 1857 constituted a vast upsurge of the pupil from all sections of Indian society. Its essence was anti British, its aim was independence and its character patriotic and nationalist. The various rebel leaders cooperated with one another and fought outside their immediate district and territories and were motivated not by self-interest but by a wide vision and patriotism.

Statement of the Problem

Historians have expressed divergent views about the revolt of 1857, some of them regarded it as a mere military revolt while others take it as a conflict between the black and the white races for supremacy. Some held the view that it was a peasants revolt the British historian's have ever been trying to call it merely a sepoy mutiny. Still some others consider that it was a conspiracy of the Hindus and the muslims against the English but the modern historian's do not recognize it as a struggle between the eastern and the western civilization and declared it to be the first war of Independence waged by the Indians.

Objective of the Study

- To highlight the revolt of 1857 as the first war of India's Independence
- To study the effects of the first war of India's Independence

Methodology of the Study

While preparing this paper historical and analytical method will be follows bases on secondary sources like books, journals and magazine etc. The authenticity of the sources will be examined.

Revolt of 1857 as the the First War of India's Independence

In 1757, the Battle of Plassey had laid the foundation of the British Empire in India. No doubt there were small and sporadic skirmishes here and there, but it took hundred years for the Indians to organize another revolt against the British in India. This revolt was a widespread public reaction against the British rule as secret emblems in the form of 'Chapattis' and 'Red Lotuses' were used to carry the message of freedom by the wondering 'Sanyasis' and 'faqirs' from village to village throughout the country. May 31, 1857 was the fixed as the day for the revolt throughout the country. This war of 1857, infamously called as the Sepoy Mutiny by some of the European historians and many other of them viewed as "The first combined attempt of many class of people to challenge the foreign power" [Chaudhuri:1957:297] was in fact India's First war of Independence. Historian S.N.Sen also prepared to invest the war of 1857 with the honor of a National war of Independence because the revolt of 1857 was in reality a product of the accumulated grievance of the people against the company's administration. Popular discontent had been gaining strength among the different sections of the Indian society. It was this discontent which burst forth into mighty popular war all section of Indian society irrespective of caste, creed and religion, peasants, merchant's soldiers fought bravely against the foreign government and sacrifice their lives. Even the common people in several areas rose up in arms, often fighting with axes, spears, arrows, lathis and sickles etc. "Government building were destroyed, the treasury was plundered, the magazine was sacked, barracks and court houses were burnt and prison gates were flung open" [Chandra:1989:35]. Their active participation and sacrifices constitute a brilliant chapter in the pages of Indian history. Because the sacrifices of the leaders during the revolt of 1857 were a source of inspiration for future freedom fighters. So it can be said that it for the first time gave birth to Indian nationalism.

The foreign scholars have named Indian attempt to overthrow the English and free their country Foreign Yoke, and a revolt, the nationalist historians regarded it as the first war of independence. It is true that its first and foremost aim was to uproot the English from India at any cost. From the letters written by the Mughal emperor Bahadur Shah to the rulers of Rasputana, it became clear that the struggle was for the independence of the

country. Bahadur Shah II had written a secret letters to the Rajput Princes i.e. "It is my ardent wish to see that Firangi is driven out of Hindustan by all. But the revolutionary war that is being waged for the purpose will not be crowned, with success unless a man capable of sustaining the whole burden of the nation will unify the whole people in himself, comes forward to guide the rising. I have no desire left for ruling over India after the expulsion of the British for my own aggrandizements. If all of your native Rajas are ready to unsheathe your swords to drive away the enemy, then I am willing to resign my imperial power and authority in the heads of any confederacy of native princes who are chosen to exercise it" [Bright: 1968:223]. It is the real evidence that the revolt of 1857 was the First War of India's Independence.

No doubt "the revolt was started by the solders but, later on people of all castes and religions joined it" [Khurana: 2012-13:175]. As is also evident from Bahadur Shah's letters, the man aim of this revolt was to turn out the English from India. Everyone was dissatisfied with the British and all Indians wanted to free themselves from their clutches. Economically they too becoming day by day even on the basis of merit, Indians could not be appointed on the higher post as the English were suspicious of them. India was divided into many small states. The English framed many illegal laws and thereby annexed most of those states one by one. It created dissatisfaction among the rulers too. Even this war broke out with the various accumulated grievances. It remained a shining example before nascent nationalism in India in its struggle for freedom from the British Yoke, and invested wish the full glory of the First National War of Independence against the British. Nana Saheb, Rani of Jhansi become national heroic and champion of National freedom, and stories of their struggle animated the fighters for freedom more than half a century later.

But many historians argue that it was not a first war of Independence, because it was confined only to the limited areas like Central and Northern India. But it is wrong evaluation. If the Swadeshi movement of Bengal which was originally confined to that province, could be called a National movement, why not the revolt of 1857, which covered the whole of Uttar Pradesh, some parts of Rajas than, central India, western Bihar, Orissa and had its repercussion in Maharashtra, should deserve that title .As regards the that most people in the country had kept aloof and therefore it cannot be applied to Indians conditions in the middle of the 19th century. We know that the lost quarter of the 18th century most of the France people gad remained aloof from the French revolution of 1789, and yet no one dare to call it local movement. It was popularly known as the French revolution of 1789, in the world.

So the revolt of 1857 can be said that as the First War of Indians Independence because those who took part in the revolt proclaimed their loyalty to the Mughal King. It was the

result of widespread public reaction against the British. There was remarkable Hindu-Muslims unity, to face the Britishers during this struggle Hindu and Muslim were well represented at all levels of leadership. "In Delhi Bahadur Shah attempted to unite dissatisfaction heavy-handed and oppressive British administration with the arguments of the religious interference, and to bring Hindu and Muslims together in a holy war against the British [Masselos: 2005:28]. Because the Hindu and Muslims too were greatly dissatisfied against British. Hence this revolt was not of any particular community are rulers but all of Indians. It may be however, be admitted that the institutionalization of all Indian services like, the Indian police and Indian army one political and non caste basis promoted equality among the Indians, even though "wide discrimination and inequality existed between the Indian and Europeans [Pannikar: 1944:204-5]. Even the war was received the sympathy of the people, the country as a whole was not behind them. Had there been no popular support behind it the war would not have spread so quickly. "Dehli Chalo" "Maro Firange Ko" was the common slogan of this war of Independence.

The revolt was not merely sepoy mutiny. Because the discontent of the sepoy was not limited to the matters military, they reflected they general disenchantment with and opposition to the British rule. The sepoy in fact was a "peasant in uniform" whose consciousness was not divorced from that rural population. "Almost agricultural family in Oudh had a representative in the army, these were 75,000 men from oudh" [Chandra: 1989:35]. The grease Cartridges was merely the match that exploded the mine which had, owing to a number of causes, been for a long time preparing. "It could be attempt to proved that the uprising of 1826, 1831, 1848 and 1854 were the rehearsal drama played in 1857" [Nanda: 2004:15]. It was much more then a military mutiny and it spread rapidly and assumed the character of a popular rebellion and a war of Independence.

On the other head different historians argued that this uprising was caused by the deposed rulers and Zamindar or their successors. But it is a wrong evaluation. History would bear witness to the fact that a large member of people took part in it and made supreme sacrifices to make their country free from British yoke "when the British annexed native states overthrowing the native rulers, large members of Indians who were in the service of these native states, were thrown out of their jobs and they could not find alternative jobs as the British service was not open to them" [Bright 1968:231].

After the feeling of various discriminatory policies of the British, the educated people also actively took part in this war against the British. Because the charter Act of 1813 the Britishers insisted to the Indians to impart the English language. A large numbers of

the educated Hindu and Muslims vehemently protested against the imposition of a foreign language.

On the other hand "the educated Indians were very much discontented as the higher civil services were kept reserved only for the Europeans and the Indians were kept aloof from such services"[Das:1998:16]. Thus the revolt of 1857 was occurred with the accumulated grievances of all sections of the peoples of India. So it became quite evident that the revolt of 1857 was the First War of India's Independence. This is the turning point in the history of India. No doubt, the British government had crusted it on the strength of its power and resources, but the feelings of discontentment and nationalism continued to be nourished in the hearts of the people. A desire for freedom kept on burning in the hearts of Indian peoples. Thus it for the first time gave birth to Indian nationalism. So it can be said that the revolt of 1857 was the First War of India's Independence.

According to Vir Savarkar and many other Indian scholars call this rising as the first war of Independence rather than a sepoy mutiny. When Vir Savarkar tried to present the actual picture of this rising he was not only persecuted but also a ban was imposed on the publication of his book which he had to get published in Holland. In this book the war of Independence Vir Savarkar admits that the Indian sepoys were the main brunt of the fighting and were the mainstay of the rebellion, but it was because in India the general people never regarded it their duty to fight. No doubt, the Indian soldiers fought against the English in 1857 but thousands of Indian people took part in it though they did not do the actual fighting. Surely it was something more than a mere sepoy rebellion or the rebellion of the selfish Indian rulers. It was a national uprising. The causes of this rising lay quite deep. The Indian people as a whole were tired English Imperialism and they wanted to get rid of it. The use of grease cartridges only did the work of a spark to light the vast hoard of materials which had been collected for the last year or so.

Effects of the War

The war of 1857 gave the dead block to the all and the outdated British administration in India. The British authorities in India realized the consequences of attempting to govern a vast country like India in the most irresponsible manner and in total disregard towards the wishes and sentiments of the Indian people. So, they began to devise ways and means for knowing the Indian minds. The British had become extremely distrustful to Indians in general and the high caste Hindus in particular and began to treat themselves as a garrison, occupying a country which might always break out in a sudden rebellion. It was thought that Lord Dalhousie's reformist policy legislation affecting

Hindu social life were responsible for uprising. After 1857, the British decided not to interfere with religious and caste question. Even the "the mission adopted in Bentinck's time to convert Indians to English man was abandoned after 1857" [Stein:2006:226-27]. After the war of 1857, the British administration was streamlined. But, apart from the general developments in the administration, the Indian war of 1857 led to the three major changes of policy. "The Government of India act of 1858, passed by the British parliament, ushered in a whole new era for India with incalculable effects on the people of India" [Ponnappa:2003:252]. There was no substantial change in the system of government. The Act provided improvement of the machinery by which the Indian government was to be superintended and control by the Britain. The war of 1857 led to the complete reorganization of British army in India. Steps were taken to strengthen the British element in the Army. More importance was given to ensuring loyalty and efficiency. "The policy of balance and counterpoise was deliberately furthered in the Indian army. Various groups were so arranged as to prevent any sentiment of national unity growing among them and tribal and communal loyalties and slogans were encouraged" [Nehru:1946:390]. The war of 1857 also compelled the British authorities to adopt a completely new attitude towards the Indian princely states for the purpose of having a better balance of power. The Indian Princes and Nawabs enjoyed great support and loyalty of the people and the British realized that to perpetuate their rule in India, unhindered and unprotected, they must win the loyalty of the ruling dynasties of India. The right of adoption of the rulers was recognized and the British policy of annexation of their territory was abandoned. The Queen's proclamation of November 1, 1858 gave the assurance to the princes that the crown would regard their right, dignity and honor as our own. It may, however, be pointed out that the British were extremely vindictive and they brutally suppressed the war and a reign of terror was let loose after the war was over. The English killed their prisoners without trial and in a manner held by all Indians to be the height of barbarity sewing Muhammadans in pig-skin smearing them with pig fat before execution and burning their bodies and forcing Hindus to defile themselves. They also massacred thousands of civilian population not only in Delhi, but also destruction and all the men inhabiting them were slaughtered and the indiscriminate burning of their inhabitants occurred wherever our armies moved. The failure of war of 1857 convinced the Indians that the sporadic acts of violence or the methods of blood and bomb would not succeed to win independence without proper organization and rousing the popular consciousness against the foreign ruler. Thus in the post war period attempts were made to organize people and to generate among them a real desire to liberate India from the shackles of British authority. Attempts were made to reform the society in order to make them free from the bonds of age-old customs, superstitions, traditions and dogmas, in order to enable them to achieve political and economic advancement.

After the war of Independence of 1857, the crown took over the powers of administration from the hands of the company. "The governor general became the Viceroy and it abolished the board of control and court of Directors" [Chakravarty: 1992:86]. Their place was taken by the secretary of the state for India and the Indian council. The secretary of state was empowered to superintend, control and directs the Indian affairs. He was a member of the British cabinet, but his salary and that of his establishment was paid from the Indian revenue. The reorganization of the army was another important outcome of the war of 1857. "The government brought about some modifications in the British Indian army after the revolt of 1857" [Nanda:2004:20]. As the company had now ceased to exist, the soldiers were considered to be the soldiers of the crown. The proportion of the British troops to Indian sepoys was increased to one-half in Bengal and Punjab, while in Madras and Bombay it was one-third. The Indian army was divided into two parts; an Indian army under British officers and units of British army in India. A commander-in-chief was appointed for the whole of the Indian army, but he was to be under the control of the Viceroy. The monopoly of the British over high civil services was also kept intact. "The Indian councils act of 1861 was an important enactment of the period" [Das:1998:23]. This act provided for an annual competitive examination for recruitment to the covenant civil service. But the venue of the examination was kept in London. Besides the rules concerning it were so framed that the Indians were virtually kept aloof from the services for a long time. Economic exploitation of the Indians increased further after the revolt. Of course, certain beneficial measures like development of transport and communication, irrigation and agriculture, sanitation etc. as a result of which the Indian people were deprived of their profits. The period after the war was marked with intensification of racial hatred and bitterness, contempt, ferocity became marked features of the English character in India. The Indians on their part remained hostile towards their rulers for many years to come. The war swept the Indian sky clear of many clouds but at the same time, it ushered in several revolutionary effects. As far as the British were concerned, the danger from feudal India came to an end once and for all. But the British had, from now on to face the new challenges from progressive India inspired by the English liberals. Another important effects of the war of 1857 was that the Indian people looked upon the war as a symbol of challenge to the British imperialism in India which helped the growth of Indian nationalism. The Indian freedom fighters were greatly inspired by the deeds of Rani of Jhansi, Nana Saheb and others who were held in great esteem as national heroes and champions. The memoirs of the great deeds of these leaders were kept alive through popular songs and ballads and continued to inspire the Indian masses to fight against the foreign yoke. Thus the effects of the war of 1857 on India's freedom movement cannot be overlooked.

Conclusion

Thus the revolt of 1857 began from Meerut, 10th km from Delhi on 10th May 1857 and then gathering force rapidly embraced a vast area from Punjab in the north to Narmada in the south and from Bihar in the East to Rajputana in the West. Several political, social, economic, religious and military and immediate cause or grievances of the various sections of pupils irrespective of caste, creed and religion had combine together for the outbreak of these first war of India's Independence of 1857. The "Delhi chalo", " Maro Firangko" was the common slogan of this war. But the ruthless repression of atrocities ended the chapter of the revolt with the hanging of Tantia Tope on 18th April 1859, including the numbers of people of India. But effects of the war of 1857 on Indian history cannot be overlooked. It resulted in significant changes in administrative structure. "The crown assumed the direct administration of India which however, was only formal" [Prokash 2004:389]. Thus it brought far reaching political , social, economic, religious and military changes in the history of British India. So the war of 1857 was an epoch making in the history of India. This outbreak of 1857 was a watershed in the British Indian history. It brought about revolutionary changes in the national life of India. "It was an organized national movement. Its great principles were 'Swadharma and Swaraj', in these two, lies the root principle of the revolutionary war" [Savarkar 1949:7]. The sacrifice of the leaders during the war of 1857 were a source of inspiration for future freedom fighters. The war became a symbol of challenge to the British. Thus it became quick evidence that the war of 1857 was a turning point in the history of India. No doubt, the British government had crushed it on the strength of its power and resources, but the feelings of discontentment and nationalism continued to be nourished in the heart of the Indians. A desire of freedom kept on burning in the hearts if Indian Patriots. So it can be said that the revolt of 1857 for the first time gave birth to Indian Nationalism.

We must remember that always a successful war of independence is branded as a rebellion or a mutiny. The game of politics never allows a political vacuum to continue for indefinite period and if the Indians had succeeded in driving out the British, they would have equally become successful in providing a united and organized government for themselves. In a war for national independence it is not material or significant as to how many people join the war, what is important is their dedication and commitment. The success or otherwise of such a war should not be identified with victory and defeat respectively. If the war of independence is to be viewed as a series of continuous and prolonged battlements with the enemy with the ultimate aim of rousing consciousness in the country in driving out the foreign rulers, then the war of 1857, though militarily lost was politically most significant and produced far reaching consequences. Despite the Sepoy's limitations and weakness, their effort to emancipate the country from

foreign rule was a patriotic act and a progressive step. If the importance of a historical event is not limited to its immediate achievements, the revolt of 1857 was not a pure historical tragedy. Even in failure it served a grand purpose: a source of inspiration for the liberation movement which later achieve what the revolt could not. Thus we can say that the revolt of 1857 was purely a struggle for India's independence which can be assumed as the foundation of Indian freedom and weakening of the British government.

Nationalism, Patriotism and Political Ideas of Sir Syed Ahmad Khan: an Analysis

Introduction

Sir Syed was a great nationalist of the British and Hindu-Muslim unity; initially, he was a proponent of the unity of British India. The first era of the 19th century was the time for the downfall of the great Mughal Empire. Sir Syed belonged to a very reputed family, his paternal grandfather was a 'Hazari', and they were all government servants during the Mughal reign. Sir Syed was born on October 17, 1817 CE, in the dark age of the Indian Muslims. Sir Syed realized the tragic conditions of the Indian Muslims in every sphere of life: educational, social, religious, and political (Iqbal, 1989). It was the time when the Mughal Empire started its downfall in India, during the period he received his early education from the Madrasa. He was a very excellent learner of Urdu, Persian, English, and Arabic. He was not merely a great personality but also a significant movement in himself.

He was appointed as a Qazi (Judge) in the British government. He worked as a government official with the Britishers. He tried to comprehend the policy of the British Government about how these few people subjugated most of the land of the Indian subcontinent. Sir Syed appreciated the administration and educational system of the British. When Sir Syed faced challenges and witnessed the miserable conditions of the Indian Muslims, he understood that education is the only mode to answer all the questions. Education was the prime issue of Indian Muslims, and it was merely a policy adopted by Sir Syed to uplift Indian Muslims. The whole country was affected by the revolutionary freedom movement of India. Muslims and other communities of India participated in the freedom movement. But to lead the issue of education, the British Government had established the school. The Muslim Ulema refused to receive an English education, but Sir Syed was the 'Man of Vision' of future time. Only a Modern Madrasa could uplift the Muslim Society. So, he considered establishing the Modern

Madrasa for the Muslim community. Through door to door, he collected the donations and established a Modern Madrasa in 1875 named 'Muhammadan Anglo-Oriental College'; after that, it changed into the University in 1920.

Sir Syed wrote copious books, but after Bijonour's rebellions, he was shocked; then Sir Syed produced two Monumental works, *Asbab-e-Baghwat-e-Hind* (1858) and '*Khutubat-e-Ahmadiyya* (1870).' From the writings of *Asbab-e-Baghwat-e-Hind*, Sir Syed tried to expose the causes of the Indian mutiny by laying the blame on Muslims. It may be considered the most reliable book of the history of that region.

Politics was not an interesting part of Sir Syed, and he never actively indulged in politics, but he was fully aware that the formation of the national government is feasible. The formation of the government would be on the basis of Majority and minority. And the Muslims are in the minority, so; the Muslims should be focused on the development of modern science and philosophy.

The problem needs to be understood; Sir Syed was rejected by the Ulama of the Muslim community. The reason for the rejection of Sir Syed Ahmad Khan's attitude and his proposal for modern education for Muslims was his rational approach to Islam. He wrote a Commentary on the Qur'an (*Tafsir-ul-Qur'an*), the Tafsir was based on the rational and scientific. So, it was the most controversial Tafsir.

His other writings also have controversy like, Qur'an is the accurate Word of God but no Hadith, rejection of the Miracle of Prophets, rejection of Pre-destination, no existence of Angels, no existence of magic, Concept of Heaven- Hell, etc. there were so many writings that depict his rational approach about God and his creatures. Several periodicals such as *Noor-ul-Afaq*, *Noor-ul-Anwar*, and *Ta'ud-ul-Islam* were started by his opponents in opposition to *Tehzeeb-ul-Akhlaq* to discourage Muslims from joining the Aligarh Movement of Sir Syed Ahmad Khan. These approaches were not acceptable by the traditional Ulama of that time, so, he has been declared as Kafir (Unbeliever) by the Traditional Ulama.

At the end of the 19th century, the Muslims were living in underprivileged miserable conditions. They were socially, economically, and even politically backward. They deliberately want to keep themselves away from modern education. But there were few Muslims who were receiving the traditional knowledge of Islam. He did not merely advise Muslims not to participate in politics but also advised them not to blindly follow their religion. He wanted to say that Islam never be traditional it needs reformation (*Islah*) and reinterpretation (*Ijtihad*) according to time. He was the 'man of vision' and profound intellectual. His vision was not simple to understand before the time, this plan

was not for a decade or century, but he was looking for the future of upcoming generations in the Muslim community.

The present study would adopt both Primary and Secondary sources of information would be consulting for the in-depth analysis of the research. Subsequently, the collected material is analyzed and examined systematically and scientifically in a coherent manner with a sense of objectivity. Besides the above, the other sources that may impinge on the present study would also be given due attention to study. The study is also based on historical facts, so secondary and primary sources are relevant to make the study more reliable.

Results and Discussion

More than thousands of articles and books have been written on Sir Syed Ahmad Khan. Most of the articles were written on his life and his great work in the form of Aligarh Muslim University and even his upliftment of the Muslim community. The books were written on his particular thought like religious views and historical aspects. But very rare writings have been written on his nationalism and patriotism ideas, so the researcher tries to ponder the national, political, and patriotism ideas of Sir Syed Ahmad.

Before examining the views of Sir Syed on Nationalism, there is a need to study the Word "Qawm." Sir Syed indicates the meaning of this word as creed, caste, class, and as a social group. He describes Qadis, Mufti, Nawab, sheikh, and Sayyad as a Qawm (Panipati, 1990). He referred to the English, French, Germans, Greeks, Egyptians and Arabs as different Qawm. Before 1884, Sir Syed interpreted "Nation" as the word "National"; he said that "I include the Hindus and Muslims, which is the only meaning I can give." He articulates that the peoples of India are one 'nation', Hindus, Muslims, Bengali, Parsis all are as a 'Qawm,' and they all make a national identity, that is, 'Indians' (Jiang, 2016). Sir Syed was aware of the pluralism of Indian society. India is a country that has massive diversities. The people of India are followers of different religions, but Sir Syed presents the idea of India as one Qawm. Indians and Britishers are different from Qawm because Britishers are not natives of India (Amir, 2000). The works of Sir Syed depict him as a lover of his community. In many speeches, he articulates to love our country by giving the reference to the Hadith of the Prophet Muhammad (PBUH). His efforts were focused on the education of the Muslim community, and he insisted that receiving the National education could be obtained in India only.

He started the Urdu Journal named 'Tehzeeb-ul-Akhlaq' in Aligarh, the purpose of publishing the 'Tehzib-ul-Akhlaq' was to promote faith and love for the motherland (Watan) and country (Balad). Sir Syed intended to say that Qawm in the term for both

‘Watan’ and ‘Balad.’ The motto of Tehzib-ul-Akhlaq was to transfer the sentiments of patriotism in order to create social reforms among the Muslims. He delivered a lecture in his college where he said that there would be no discrimination against any particular community; both Hindus and Muslims would be brothers and receive a similar education. All have equal rights to enjoy within the college, including the enlightenment of scholarship. He also thanked those Hindus who donated the spirit for the college (Amir, 2000). It depicts that Sir Syed wanted to make one nation comprising of Hindus and Muslims.

In India, Sir Syed, in his speech (February 3, 1884), articulates that “by the word Qawm, I mean Hindus and Muslims both. This is the sense in which I interpret the word ‘nation’. He was unhappy to realize that only Hindus consider themselves Indians and Muslims are foreigners (Amir, 2000). Not only Hindus but also Muslims are the natives of Hindustan. The Aryans came to India for prolonged periods.

The people of India mixed up with Aryans, and they all called themselves "Hindu" (natives of India). Even the Hindu Aryans are not natives of Hindustan, and there are many Muslims found in India whose blood match with the Aryans. Both the communities of Hindus and Muslims have been living in India for long periods. He added that “India is like a bride who has two beautiful eyes; if one eye is lost, it would lose its beauty” (Panipati M. I., 1963). Sir Syed said that not only Hindus and Muslims are two communities in India, but also the followers of other religions are also the natives of India. It is the depiction of a great lover of the geographical nationalism of Sir Syed (Panipati M. I., 1979).

His speculation was on the conflict among all the communities of India that make our country very weak, disappointed and it would be shattered into pieces. The blessing of living together has departed from us. It brings to standstill progress for the country. So, there is a need to change this discord and enmity with unity and solidarity through mutual love (Khan, 2004). Sir Syed said: “at present, the great cause of our decline as a people is that we have forgotten the idea of National Unity.” Sir Syed was partly impressed by Tipu Sultan (Ruler of Mysore, Known as ‘Tiger of Mysore’) because of his secular and nationalist outlook (Khan, Muslims In India, 2004). According to Sir Syed, politics is not a solution to every problem related to the Nation, and but merely education is the safeguard of our culture, tradition, and religious identity. He said that some people hold an option that our national cause will be promoted in the best way by discussing political discourse. But I do not agree with them because the spread of education is the only means to the promotion of our national cause’ (Raza, 2001). Sir Syed played a significant role in giving the solution of the national cause and national development in such a critical time. Jawaharlal Nehru (First Prime Minister of India)

wrote in his book *Discovery of India*, p.298: 'Sir Syed was in no way anti-Hindu or communally separatist. But he only opposed the formation of Congress in 1885'.

The family of Sir Syed had traditional relations with Hindus. When his maternal grandfather Nawab Fariduddin Khan divided his property to his son, he also gave an equal share to his Hindu diwan Lala Muluk Chand. He treated him as a family member. When Sir Syed established a madrasa in Ghazipur, and Raja Dev Narayan Singh was invited. When Sir Syed was in Delhi, he always participated in all the festivals of Hindus. When he was in his last days, there were 285 Muslim students, 64 Hindus students, and 7 Hindu teachers in the Muhammadan Anglo-Oriental College (MAO). An excellent example of Sir Syed of communal harmony was that he gave gold medals from his pocket to Hindu students who got the first division in bachelor's degree (Nizami, 1985).

Sir Syed promoted communal harmony by inter-faith dialogue. He wrote commentaries on the Bible to make good relations with the Christians, and he did a sympathetic study of the Bible to make social interaction with Christians (Ansari, 1989). He also advised destroying the British policy of divide and rule (AMU, 1998). In 1860, he started to release a pamphlet called the 'Loyal Muhammadans of India' in which he argued that Jihad is not permissible in India, and he recorded the veracious account of Muslim nobleness (Jain, 1983). During nobleness, he was the symbol of communal harmony. That was the time when there were three communities in India British, Muslims, and Hindus; it was critical to think about how to face the challenges of communalism. Some people were supporting the British Government, and some were against it and were demanding their freedom. The great clash of the ideology of Sir Syed emerged then Sir Syed wrote many articles to bring Hindus and Muslims together on one platform.

He described that he heard the people of Bareilly who had given the proof of love and majestic of communal harmony. One incident he has explained is the collection of funds collected by the Hindu and Muslim communities to construct a mosque in Dhaka (now in Bangladesh). Therefore, Sir Syed showed his sympathy and congratulated them on maintaining brotherhood (Khan, *Selected Essay of Sir Syed Ahmad*, 2004).

Sir Syed was the symbol of Hindu Muslim unity; he delivered a speech at Gurdaspur on January 27, 1884; he said: "O Hindu and Muslim! Do you belong to a country other than India? Don't you live on this soil; are you not buried under it or cremated on its ghats? If you live and die on this land, then bear in mind, that... all the Hindus, Muslims, and Christians who live in this country are one nation" (Sir Syed Ahmad Khan).

The Christians are also part of the Indian national, the word 'Qawm' does not merely related to Hindu Muslim unity, but every community which is living in India is related to

‘Qawm’. Hindu are in the majority and Muslims are in the minority and others communities (Sikh, Christian, Parsi, Jain, and Buddhist) are also in minorities, and the Muslims are the second-largest majority in India, so under the British rule in India, both communities have conflicted to each other, that’s why Sir Syed indicated to both (Hindu and Muslim) as a ‘Qawm’ because of continuous conflict between both.

Sir Syed had not discussed about any specific types of government in his writings but he described what he felt. He thought that God did not create any political society it’s a management of the Human Beings according to their suitable match. Human society form with two things, government and its citizens, both have same collaboration to form the civilized society. Mercy must have the main role in making society better, the state must be the results of mercy but citizens also show mercy towards the state. The Sir Syed did not participate in politics, but he was much influenced by some events in England. The best example was ‘the subjugation of the Britishers’ on the most of the land of the world (Muhammad, 1969).

Sir Syed was not merely an educationist but also a political thinker of his time. His political ideas concerning his contemporary plights were penned down by him, giving an overview of what he felt about politics. He objectively analyzed the real cause of the revolt. Sir Syed was an eyewitness of the mutiny of 1857. The mutiny of 1857 greatly impacted Sir Syed, and he worried about Indians because of the killings of both the communities, Hindus and Muslims. Sir Syed realized that Muslims could not defend their rights without gaining the knowledge of science and technology, without which all efforts of political emancipation would prove futile. He delivered a lecture in Amritsar (a place in India), where he said: "if the government has not conceded some of our rights to us as yet, for which we may have a grudge, higher education, is such a thing that it will secure those rights for us, maybe willy-nilly, or against its wishes." (Jain, 1983). *Asbab-i-Baghwat-e-Hind* (The Book of Sir Syed, The causes of Indian mutiny) was a significant work of Sir Syed Ahmad Khan, but the government ignored the conditions of its subject while the people were unable to understand the policy of British rule (Nizami, 1985). It was the first political pamphlet written by an Indian in the British Government. Even the founder of the Congress, A.O. Hume (Allan Octavian), himself said that he was much impressed by this booklet (AMU, *The Glowing Legend of Sir Syed*, 1998).

The political ideas of Sir Syed were influenced by the remarkable events which took place in England in the 19th century. It was the time of the rise of Britain's most enormous world power. And it made Sir Syed understand the whole politics of India. Sir Syed was also influenced by the political ideas of Lord Ripon and Gladstone (AMU, *The Glowing Legend of Sir Syed*, 1998). Monarchy, constitutional monarchy, parliamentary, and presidential government are forms of government. He did not like monarchy or

even constitutional monarchy. He also opposed every type of hereditary rule. Sir Syed said: "I am Musalman (Muslim), an inhabitant of India, belong to the Arab race. From these two facts that I am a descendant of Arabs and Musalman, one can infer that I am a true radical from the religious and national point of view and then my religion is Islam and teaching radical principles and is not compatible with the despotic rule; neither is it like limited monarchy for it dislikes all hereditary Government." According to Sir Syed, any political agitation is harmful. Any agitation (Dharna-Pradarshan in Hindi) has no justification, and it does not matter which type of government is ruling. In the republic government, it demands to remove the president; in parliamentary government, it affects the ministers, and in a monarchy, it directly affects the ruler.

Sir Syed dared to convey his message through publishing to the government as well as the common people. Once, many people gathered around Sir Syed and were bickering. Even friends of Sir Syed said to him that the brochure would not be published. Another said to Sir Syed that you should burn it, but he ignored all the comments against his decision. But he printed a copy of the pamphlets and sent it to the Government of India (British Rule). There were men like Mr. Cecil Beadon (foreign Secretary) who considered the request of Sir Syed. It was the first time when the partial publication came in 1861, where Indians were admitted for the first time in the GovernorGeneral's legislative council (Sherwani, 1944).

Up to the end of the 19th century, there was no existence of a Muslim party in India. It did not mean that Muslims would segregate from the mainstream of politics. Not all Muslims were supporters of the Congress, but some Muslims were supporters of the education policy of Sir Syed. He realized the conditions of Muslims and asked them, based on non-religious dogmas, to refrain from active politics. He knew that Muslims were more backward and not able to get jobs in the British government. He insisted on uplifting the Muslims by education. 'Education is the only tool that would enable Muslims' upliftment in mainstream society. He never said that participation in politics is religiously forbidden. Sir Syed inculcated three ideas of politics. First, Muslims had to keep away from politics. Second, the British must be befriended. Third, Muslims should not join Congress (INC). He said that Muslims must leave politics until they have reached the level of Hindus. Aligarh (a place in India) became the symbol of Muslim politics, particularly when it became the Aligarh Muslim University. Sir Syed said that political rights: "were more important than religious traditions, and so long as the Muslims lived freely under British rule, they would remain good subjects." (Hasan, 1997).

The Hindus and Muslims were living under the British Government, and they had political differences. Most of the Hindus supported Congress because many prominent leaders were in Congress, but many Muslims were not supporting Congress and even

against the policy of Congress also though Muslims and Hindus behave with love, friendship, solidarity, and respect for their religion.

As an educationist, Sir Syed opposed the Indian National Congress (INC). He was the contemporary of A.O. Hume, the British administrator, and also defended him on occasions, especially on the question of the foundation of a native volunteer's corps in India. Hume was the forerunner of the Indian National Congress. Still, he knew that Congress of those days was only a shock absorber about which A. O. Hume had himself said that it was 'a safety valve' for the escape of great and growing forces generated by our own action (AMU, *The Glowing Legend of Sir Syed*, 1998). The Muslims strongly rejected the Indian National Congress because the leaders of Congress were Hindu; the majority was Hindus and overwhelming the minority interest. The minority could not challenge the decision taken by the majority. And there would be no consideration for the minority. That is why Sir Syed feared that the Indian National Congress party's political interest would overwhelm the Indian Muslims (Lan Jiang, 2016).

Sir Syed was deeply disturbed to expect that a large number of young Muslims would gather for the forthcoming session, which was going to be organized in Madras; 'Badruddin Tayyabji' was the president of the session. In Lucknow's speech (1887), Sir Syed intentionally said that this speech was only for opposing the Congress. He also criticized the Badruddin Tayyabji for joining Congress and said that he made a mistake to take part in the National Congress. No Muhammadans from Madras and no 'Rais' from Bengal took part in the national Congress (Sir Sayyid Meerut). Badruddin Tayyabji wrote a letter to Sir Syed that if the Muslim delegates who would oppose Congress in any matter and the Congress would not take it up. Sir Syed replied because Congress is a political body, there was no political question which would be opposed to the interest of the Muslims. Here, Dr. Rajendra Prasad (First President of India), seeing the whole scenario of opposing Congress by Sir Syed, said that 'Mr. Beck had utterly succeeded in misguiding and converting Sir Syed (Prasad, 2010). In 1888, Sir Syed established the 'United Indian Patriotic Association' (UIPA), which had a large number of Muslims, noble Hindus, and even English members. Through this association, he started to counter the activities of Congress (Amir S. , 2000). It depicts the primary leadership of Sir Syed.

In the critic writings on Sir Syed Ahmad Khan, many times, it has been written that, Sir Syed merely care about the Indian Muslims and wanted to uplift them. The researcher has pondered that Sir Syed was not merely wanted to develop Muslims but also the other communities of India. After the downfall of the Mughal Empire in the mid of 19th century, India came under the rule of the British, so the conditions of Muslims became more deteriorate. It would be said that he was more focused the community, which was

more in miserable plights and also facing the challenges of economic crises. He used the word 'Qawm', which indicates to all the community of India, whether they are Sikh, Muslims, Hindu, or others. It also depicts the unification of Indians and also one 'Nation'. So, all Hindus, Muslims, Sikhs have one National Identity that is 'Indian National'.

He wrote many articles and books on social upliftment. And he also started a journal named 'Tehzeeb-ul- Akhlaq'; the motive of this monthly journal was to send the ethical and social reformer message of Sir Syed to the Muslim community. Through these works, Sir Syed conveyed the messages of social developments and modern education to the Indians. Even Sir Syed used said, 'India is like a Bride'.

The researcher also finds in his study that Sir Syed was also the 'epitome of communal Harmony'. He had many friends who were Hindu; the researcher has mentioned the name of several Hindu friends. He also worked in collaboration with Hindus and set the highest tradition of goodwill, and also worked with the several communities of India.

Sir Syed advised to the Muslims not to participate in politics. Muslims' conditions did not favor; Sir Syed knew that if they joined the political parties, they were in the minority, so the Muslims came into the system not and should not be part of politics. If the Muslims would not know about their rights, then how would they defend themselves? So, Muslims should have knowledge of modern science and technology. And Sir Syed know better that the, Education is the tool which makes strong in the system as well as in the country.

In the early period of Sir Syed Ahmad Khan, he did not have an idea about politics; he was just as a Munsif (Judge), but in the later period, he started to understand politics. When he saw the mutiny of 1857, he tried to write about politics, but he was neither involved in politics nor did he want Muslims to participate in politics. He devoted most of the part of his life, and he was merely worried about the underprivileged community of the Muslims in India because they were socially, politically and, economically backward. He tried to explain the 'meaning of rebellion, fighting against the establishment government, helping those who are enemies of the established authority, and explaining the laws and forces. He has not merely tried to explain to the government but also the rebellions. So, after that, he wrote several pamphlets and, through his writings, maintained peace in the country.

On the other hand, Sir Syed was much aware that the political decline of Mughal was also the decline of Muslims in India. The political ideas of Sir Syed directly related to forms of government based on circumstances. The people of any country must be live

with peace and harmony. Like, India has its composite culture and it has diversities in caste, culture, and religions also. Even Sir Syed also wanted the unity in Muslims should be through education. His prime motive was to empower the Muslims, whether in politics or in Modern education.

In the contemporary world, most minorities face the challenges of identity crises based on their nationality. As the minorities are compelled to show their love to the country, the word 'nationalism' is stereotyping, which depicts love for their own country. So, in all these plights, Sir Syed Ahmad Khan can icon for the young generations in the field of love, unity, education, and practitioner of religion. In the late 18th century, he was a mere person shows himself as a lover of their country and loyal to the British Mandate. In plights of British Mandate, nobody dares to write anything without the permission of the British Government; in such conditions, he wrote a book 'Asbab-eBaghawat-e-Hind' on the famous revolt of 1857, which was famous mutiny in Indian history. His dynamic personality is not specific for Indians but for the whole world to learn the lesson.

Conclusion

Sir Syed was a 'man of vision'; he did not like to live in the past. Therefore, he wanted to create awareness among the Muslims on the realities of the world. He approached to the Britishers to make good relations between British and Muslims, to achieve all the goals. He proved himself as a great nationalist; Sir Syed was a great nationalistic in a political sense. He wanted the Muslims as an identity of Indian Muslim. And Hindus and Muslims should be one identity of Nation "Qawm". He was the symbol of communal harmony; he wrote many articles and delivered his speeches to maintain the brotherhood and unity of the nation. It was the period India was under the British mandate, and many Muslim intellectuals and elites were attached to the Congress, but they were not doing anything to uplift the Muslim community; even the conditions of Muslims were deteriorating. Sir Syed initiated the Muslim community educationally strong because education was the only weapon to make the Muslims uplifted and simultaneously the nation progress and develop further. Many Muslims clergies opposed him for providing English, modern and advanced education for Muslims.

Week 3: Mohammad Allama Iqbal

Islamic Identity in Indian Subcontinent – The Case of Mohammad Iqbal

Iqbal's Metaphysical Moorings

"I therefore demand the formation of a consolidated Muslim State in the best interests of India and Islam. (...) Communalism in its higher aspect, then, is indispensable to the formation of a harmonious whole in a country like India (...) In conclusion I cannot but impress upon you that the present crisis in the history of India demands a complete organization and unity of will and purpose in the Muslim community, both in your interest as a community, and in the interest of India as a whole

Sir Iqbal was intellectually and spiritually moved by an array of philosophers, political theorists and religions across time and space. History has been unkind in its judgement of his eclecticism and depth of understanding. His brief stint in the west introduced him to Plato, Hegel, Kant, Nietzsche and Bergson. The latter made him disapprove of the Platonic claim on 'Being' and rather move towards Heraclitus' view on time as 'Becoming' However, in a departure from the strict dichotomy of Being and Becoming in the western philosophical parlance Iqbal synthesised the possibility of knowledge or God by emphasising on the eternal and yet ever changing universe. The Italian theorist Alessandro Bausani identified the divine inspiration as the source of the forces of nature in Iqbal's religio-philosophical system.

It is important to know that Iqbal did not advocate a single universal truth. His staticness in this regard is only limited to its essential nature and not the content. This is reflected in Iqbal's admiration for Shah Waliullah's historicism that interpretations of religion can be differing to space and time but the "essence of religion" i.e monotheism is universally applicable. Iqbal accommodated Kantian individualism with the eventuality of purposeful activity. And yet he agreed with Nietzsche in his critique of liberal rationalism. As Gordon-Polonskya mentions

As with Nietzsche, the man personality "ego" is at the center of Iqbal's philosophical conception, despite its religious nature. As with Nietzsche's superman, a characteristic of the ego striving towards constant action. ³ Thus indigenising western rationalism from religious vantage has been Iqbal's original contribution. Far from celebrating stagnant traditions, impressed by Hegelian dialectics he illustrated the dynamism in Islam by referring to Ibn-i-Muskawaih's theory of life as progressive and evolutionary while dismissing any attempts fixing the nature of this movement such as historical materialism, which was fashionable in the contemporary circles. In Asrar-i-Khudi and

Ramiz-i-Bekhudī Iqbal mentioned the imperative of combining the reformation of Islam with its ethical postulate of “the philosophy of man-activist.”⁴ Iqbal gave a static concept of truth while rationalising an a priori concept of God. By rejecting the determinism stemming from historical time, he struck a balance by giving eminence to the causal action and its creative interpretation (ijtihad). This surety and fundamental faith in knowledge led him to negate of speculative and dialectical Greek thought. Iqbal’s appreciation of pantheistic Sufism describes his avowed fascination with unity with God and mystic truth.

He blamed the Greek influence on Persia as the reason for later decay in the original Arabic Islamic thought. Greeks followed the precepts of “theoretical rationalism” in which the Sophistic argumentative tradition merits attention. Iqbal, on the other hand, praised the Koran for its “practical rationalism and knowledge through sense perception.”⁶ He was a critic of the decadent avatar of mysticism or tasawwuf which led to endless philosophical meanderings in the quest for God. In his doctoral thesis *The Development of Metaphysics in Persia* he criticised this obstructionist and destructive philosophy as hindering Islam. He rationalised religion by imputing Nietzschean rationalist method in his assessment of the twelfth century philosopher Ghazali. This ‘Kant of Islam’ voiced for the limits of human reason while criticising Greek philosophy. The “reign of unbelief” meted out by rationalist and metaphysical assault on religion could be demolished by retrieving the original Islamic interpretations. In this vein, Iqbal dons the romanticist hat.

In a series of lectures *The Reconstruction of Religious Thought in Islam*, he has voiced the embodiment of justice, scientific temper in religion for the all round development of human personality. He borrowed from the Ash‘arite school of atomistic theory to reconcile the eternal creative imagery of God with perpetual and ceaseless activity in the universe. He arrived at a dialectically creative metasystem of existence which is sustained by absolute and relative truths.

Iqbal’s Political Thought

The rationalist and praxis oriented approach of the holy text made him adopt a similar tactic in politics. He noted a “profound duality”⁷ in the political scene of colonial India. His role as a reformer of Islam made him visualise the revolutionary potential who Indian masses despite their utopian socialist aspirations were religiously conservatist. Recognising this peculiar ‘modernity of tradition’ Iqbal was thoroughly impressed by Sir Sayyid Ahmed Khan for accommodating this contradiction. The latter voiced “the anti-imperialist ideology of Muslim nationalists and the pro-British “communalist” ideology of the elite of the Muslim community”.

However Iqbal differed with Khan in latter's political somnolence with the British. His poems *Tasvir-i-Dard* and *Khuftaganj-i-Khak Say Istafar* (A Land Asleep) reflects the anguish of a young nationalist Iqbal. His association with *Anjuman-i-Himayat-i-Islam* disappointed in its support for British education and concerns of Muslim bourgeois classes. It is not remarkable that the secular and all embracing character of nationalism in Iqbal which is epitomised in *Naya Shivala* to pan Islamism advocated in *Shama Awar Shair* as would be seen later.

The 1857 revolt had placed Indian Muslims under suspicions of anti British activities. The former class of Persian and heavily Persianised Islamic nobility has suffered tremendously under the new regime. Khan's advocacy for "national self help" matched the call for evaluating self or *khudi* by Iqbal. The estrangement caused by dethronement of the Khalifa in Turkey and collapse of Ottoman empire had psychological impact on Muslim selfhood across the world. Allama Iqbal's theory of self or *khudi* beckoned introspection within Islam as it had acquired a self denying and deprecating character in assimilation with new cultures. The renaissance of Islam was nothing but a reevaluation of the sad decline, something which critics have found as checking the liberal and progressive elements among Islamic intellectuals.

However, reformation and change was inevitable to Iqbal in his appreciation of the October Revolution. His piece *Nava'i Mazdur* celebrated the proletarian revolutionary potential. He combined this simmering energy with the *nacharia* theory of nature by Sir Sayyid Ahmed Khan which has explicated the utilitarian use of knowledge of nature. Iqbal modified his theory to envision the creative possibilities for human action amidst the loss of consciousness in the modern world. Iqbal's works *Ramiz-i-Bekhudi* and *Asrar-i-Khudi* paint a Kafkaesque nightmare of loss of personality in an increasingly despondent society.

Iqbal found a cultural alternative to the British, somewhat similar to Gandhi's anti colonial stratagem to which Ashis Nandy refers to in *Intimate Enemy*. Like Iqbal's self doubts over Islamic heritage, the meaning of history in evolution of knowledge; Gandhi underscored the 'living past' in conjunction with the Karmic view of history. He had met Iqbal intellectually in simultaneously borrowing from the great and little traditions to create a totality of Indian civilisational values and battle the British with "power" and "activism". It is worthwhile to quote extensively

"He (Gandhi) rejected history and affirmed the primacy of myths over historical chronicles (... This) was the salience given by Indian culture to myth as a structures fantasy which, in its dynamic of the here-and-the-now, represents what in another culture would be called the dynamic of history. In other words, the diachronic

relationships of history are mirrored in the synchronic relationship of myths. (...) Public consciousness was not seen as a causal product of history but as related to history non-causally through memories and anti-memories. (...) Gandhi, however, was a product of society which conceptualised the past, as a possible means of reaffirming or altering the present. (..) While this position does not fully negate history and interpretations of myths as history, (...) the Gandhian position does make a subsidiary anti-historical assumption that, because they (myths) faithfully contain history, because they are contemporary and, unlike history, are amenable to intervention, myths are the essence of a culture, history being at best superfluous and at worst misleading.”

This is strangely reminiscent of idealism in Iqbal’s attempts at philosophising Islam and the need for its resurgence. He was influenced by Jamal-ud-din Afghani’s attempt to resist the west’s overbearing dominance through Islam. This was the genesis of pan Islamism in Iqbal’s political moorings. He was univocal in the need for modernism in Muslim states and had criticised the then Iranian state for vesting powers to ulama in political affairs. He rejected theocracy of any kind and maintained the call for equality of all men and need for solidarity to resist domination. He also questioned Kemal Ataturk’s position of a dominating state and subservient religion.

Iqbal’s analysis of several Islamic concepts like qawm, ummah, millat provide a fruitful analysis in his transition from a nationalist to supposed communalist. He has rejected the society-nation-religion dichotomy and yet maintained the independence of these social terms. Millat refers to the followers of the Prophet whereas qawm is a social group. There was space in Koranic interpretation to allow for alliance between followers and non believers for the cause of nationalism. Most importantly, Iqbal in his review of Koranic concepts refers to the possibility of a qawm (nation) having millat (religion) but not “quam of millat” or nation of sharia. This meant that the Koran called for Ummah or worldwide affiliation of believers. The universality of this Koranic injunction refers to the “spiritual brotherhood of Islam”.

The later historical development of proliferation of medieval Islamic states relegated qamiyat or nationalism to refer to believers. This evolved the concept of quam to denoting a nation with territory. Allama Iqbal transitions from this pan Islamist phase to concrete nationhood following the historical evolution of Islamic thought and political power. His transformation from abstract philosophical journeys to political realities does not reflect a break but rather a continuity in his thought system.

“The religious ideal of Islam, therefore, is organically related to the social order which it has created. (...)The unity of an Indian nation, therefore, must be sought, not in the negation but in the mutual harmony and cooperation of the many. (..) I entertain the

highest respect for the customs, laws, religions, and social institutions of other communities. (...)

He and Abul Kalam Azad were closely associated INC but he separated later in his quest for equality and self determination of Muslims. This stemmed from the elitist and bourgeois affiliations of INC which Subhas Chandra Bose was to criticise later also due to Muslim League's catchphrase for Pakistan.

Conclusion

He linked the social and political question together, unlike Gandhi who avoided pernicious aspects of caste and religion altogether. Why did Iqbal demand a Muslim state in India ? To him, the question of decadence in Islam, political subjugation of India, the plight of worker and peasants were linked in an intractable mass of system of dominance that stretched to the realms of knowledge production to actual social relations. The colonial reality had produced a series of confounding questions of self doubt within ancient traditions and a way to resolve the contradictions had to found by confronting . It is apt to sign off with his extracts of his legendary monologue:

“During the last five hundred years religious thought in Islam has been practically stationary. (...) With the reawakening of Islam, (...) it is necessary to examine; in an independent spirit. (...) Besides it is not possible to ignore the antireligious and especially anti-Islamic propaganda in Central Asia which has already crossed the Indian frontier. (...) The task before modern Muslim is, therefore, immense. He has to completely rethink the whole system of Islam without completely breaking with the past.

Given the current conundrum of identity in Islam and dilemmas of statehood and nationalism, Iqbal's prophetic diagnosis of the crisis in religions in the modern world can be reassessed. His separatist anguishes can be seen as unavoidable diatribes in an atmosphere of blatant elitism in social and political circles. As the spiritual and cultural founder of Pakistan and Bangladesh, Iqbal's fundamental dilemma has plagued one of the most volatile and yet culturally compatible geographical regions in the world.

Week 4: Iqbal and Jinnah

Allama Iqbal and Muhammad Ali Jinnah's Voyage from Indian Nationalism to Muslim Separatism

Introduction

Pakistan came into being as a sovereign Muslim state in August 1947 on the basis of an ideology called as 'Two-nation Theory'. Hindus and Muslims had been living together in Indian subcontinent since eighth century and India had been ruled, for most of the time, by the Muslim rulers who had promulgated justice and introduced religious tolerance towards other communities, thereby successfully ruling over a Hindu majority country. With the advent of British and failure of Indian War of Independence in 1857, all Indians (Hindus and Muslims) collectively triggered a political struggle to attain emancipation from the British rule. In the beginning, all political leaders, Muslims and Hindus struggled for United India but with the passage of time, and experiencing the Hindu facet, the prolific and accomplished political leaders, especially Sir Syed Ahmed Khan, Dr Allama Muhammad Iqbal and Quaid-i-Azam Muhammad Ali Jinnah transformed their political philosophy from Indian nationalism towards Muslim separatism. This voyage proved to be the decisive factor in the attainment of a separate homeland for the Muslims of Subcontinent and this did not take much time. In less than fifty years, between 1880 to 1930, three loftiest Muslim leaders; Sir Syed Ahmed Khan (1917-1898), Allama Dr Muhammad Iqbal (1877-1938) and Muhammad Ali Jinnah (1876-1948), starting their political career as staunch Indian nationalists ended up as the Muslim separatists, thereby paving a way towards the creation of Pakistan. In this study, the political philosophy of Allama Iqbal and Quaid-i-Azam Muhammad Ali Jinnah and its transformation from nationalist to separatist need to be analysed in the political milieu and annals of succeeding events / attitudes to determine it a vital factor towards the attainment of an independent state. For comprehensive, understanding all variables need to be elaborated in true perspective to truly understand the political ambience and derive desired deductions.

Nationalism

Nationalism is a psychological relationship reflecting unalterable love for one's country / land and even desire to sacrifice one's own life for its honour, dignity and defence. According to the Penguin Dictionary of Politics "Nationalism is the political belief that some group of people represents a natural community which should live under one political system, be independent of others, and, often, has the right to demand an equal standing in the world order with others".

Merriam-Webster dictionary defines the concept of nationalism as ‘a feeling that people have of being loyal to and proud of their country often with the belief that it is better and more important than other countries’.

Encyclopedia Britannica explains the concept as “a feeling that people have of being loyal to and proud of their country often with the belief that it is better and more important than other countries”. The concept of Indian nationalism was that people from all religions; Muslims, Hindus, Christians, Sikhs etc, all races, ethnic groups desire to live in United India peacefully without being divided in the name of religions, languages, races and ethnic groups. Muslims arrived in India in eighth century and then started living with Hindu majority peacefully. India had been ruled by the Muslims, for most of the time, and their philosophy of religious tolerance created harmony amongst Indians; all kept living in United India above their religious, ethnic and racist considerations. Dr Allama Muhammad Iqbal writes about this concept that “It seems to me that God is slowly bringing home to us the truth that Islam is neither nationalism nor imperialism but a League of Nations which recognizes artificial boundaries and racial distinctions for facility of reference only, and not for restricting the social horizon of its members”.

Seperatism

The concept of separatism is that a group of people do not want to be part of specific country anymore and want to formulate a separate country on the basis of religion, language, ethnicity, race or land. It can also be defined as “a desire by a large group of people (such as people who share the same culture, history, language, etc.) to form a separate and independent nation of their own”. Separatists in Subcontinent wanted not only independence from British but also from other majority i.e. Hindus and wanted their own separate homeland like Muslims of India were demanding for Pakistan. These separatist ideas were not based on narrow communalism but has a long history where they were forced to nourish the concept of a separate nation with own distinctive history, culture, language and civilization worthy to have a separate homeland. Minorities especially the Muslims had the fear that they would lose their identity in front of Hindu majority in the name of democracy.

Allama Dr Muhammad Iqbal (1877-1938)

The poet-philosopher of Islam and the thinker of Orient was born in Sialkot in 1877, qualified Masters in Philosophy from Government College Lahore and proceeded to Germany for his PhD in 1905, and after completing the degree came back from Europe in 1908. Like Sir Syed Ahmed Khan (1817-1898), Iqbal was an Indian nationalist in the

beginning; as Sir Syed hasd been a staunch supporter of Indian nationalism, always personified India as a beautiful bride and Muslims and Hindus as her lustrous eyes. It was only Urdu-Hindi Controversy of 1867 that Sir Syed changed his political philosophy from Indian nationalist to Muslim separatism; and mentioned it to his friend Shakespeare, the commissioner of Banaras. Likewise, Allama Iqbal also became convinced that concept of Indian nationalism is narrow in its spirit as it is based on ethnicity, culture, and land. Allama Iqbal chose poetry as a medium for the reflection of 'prevailing milieu, his people's hopes and fears, their ambitions and aspirations, their travails and dilemmas'. But unlike Sir Syed Khan and Quaid-i-Azam Muhammad Ali Jinnah, he passed through three distinct phases of his life, termed as 'nationalistic, pan-Islamic and Muslim-nationalism phases' . Talking about the first phase; Iqbal earned fame as an Indian nationalist in the beginning, as 27-year old lecturer of Government College Lahore and was enthralled in passionate love of India (Hindustan). He used to admire and eulogize the romance of India by describing its incredible rivers, wonderful mountains, ravishing beauty, glorious past and an enviable cultural heritage. This is the time once Iqbal, like other nationalist poet of Bengal; Rabindra Nath Tagore cherished the idea of United India. Once he was invited by a student Lala Har Dayal to preside over a function and instead of making some speech, Allama Iqbal recited Tarana-i-Hindi which was included in his book Baang-i-Dara:

(Better than the entire world, is our Hindustan, We are its nightingales, and it (is) our garden abode)

(Religion does not teach us to bear animosity among ourselves We are of Hind, our homeland is Hindustan)

This song undeniably reflects the attachment of Iqbal in an elegiac way, with the land of Hindustan while embracing its ethnic, religious, and cultural diversity. Iqbal here appreciates the pluralistic and composite Hindu-Muslim culture and admires their peaceful co- existence. Everywhere Iqbal admires his country and people along with the cultural diversity. Then Iqbal left for a three-year sojourn towards Europe where his philosophy is changed from Indian nationalist to a purely Islamic philosopher; a great visionary endeavoring to establish Islamic polity. This is the time once he carried out an extensive study of Islam and modern European society which helped him change his thoughts; but still avoided being Muslim separatist. On his return to India in 1908, a transformation can be seen in Iqbal. The political ambience at that time in Subcontinent was that Partition of Bengal was carried out in 1905 where Muslims took sigh of relief which could not be tolerated by the Hindus (in the name of Bengali nationalism) and they triggered a movement for its annulment Iqbal in a changed mind, in 1910, recited

following song Tarana-e-Milli (Anthem of the Religious Community) repudiating the earlier sentiments:

(Central Asia and Arabia are ours, Hindustan is ours We are Muslims; the whole world is our homeland)

Now in 1910, Iqbal's philosophy had been transformed and had become global; now Hindustan is not 'our homeland' but the 'whole world is our homeland'. Iqbal stated that Islam endeavoured to create new social set up millat or Ummah which must not be identified / amalgamated with a country; and since Muslims are different in their culture, history, ideology and civilization, therefore, cannot be assimilated in a Hindu-dominated political nationalism of India and instead advocated for cultural nationalism. Iqbal criticised the Muslims for becoming race-conscious, race-oriented and followers of narrow patriotism as well as false nationalism; motivated them to build up a single millat or ummah, and then raised a clarion call to forge unity amongst Muslims for unfilterable defence of House of Allah from the banks of the Nile to the frontiers of Kashgar.

In next two decades, Iqbal had very minutely observed the succeeding events in Indian politics along with their attitude, response and dealings with Indian Muslims; the events like termination of Khilafat Movement (1919-1921), Nehru Report (1928) and Hindu response towards Jinnah's Fourteen Points (1929) and was convinced that Hindu facet in India had become much pronounced. Hindus were no more tolerant towards Muslims; but were hell bent upon eliminating their identity from India. Nehru propagated that Muslims were afraid of democracy, besides having roots in religion but '80 million Muslims are looking a safeguard against the communal oligarchy of Hindus in the garb of democracy' 19 as the Hindus formed three fourth of the population. Once he observed that all possible attempts of reconciliation between these two conspicuously distinct nations had been exhausted, he then in 1930, supported a separate nation-state in Muslim majority areas of Indian Subcontinent and paved a way towards the creation of separate homeland (Pakistan). In the annual address of Muslim League at Allahabad, Iqbal unequivocally enunciated that:

"India is a continent of human groups belonging to different races, speaking different languages and professing different religions. Their behaviour is not at all determined by a common race consciousness. I, therefore, demand the formation of a consolidated Muslim state in the best interest of India and Islam."

This epoch making address contained the final destiny of the Muslims of Indian Subcontinent and the country was termed as "Pakistan as brainchild of Iqbal" as he

spoke that "I would like to see the Punjab, North-West Frontier Province, Sindh and Balochistan been combined into a single state" and finally announced that "The formation of a consolidated North-West Indian Muslim State appears to be the final destiny of the Muslims, at least of the North West India.

Allama Iqbal's demand of separate homeland for Muslims was not based on narrow concept of communalism; he clarified it by saying:

'A community which is inspired by a feeling of ill-will towards other communities is low and ignoble. I entertain the highest respect for the customs, laws, religions and social institutions of other communities.

Iqbal observed that nationalism in Europe nurtured in the land of secularism, which declared the religion as private affair and excluded the role of religion from social and political spheres of life. Consequently, it deprived European states of the common bond of religion in which they were connected. Consequently, territorial and racial nationalism replaced the religion. In his Allahabad address, Iqbal has traced back the evolutionary process of the rise of secularism and nationalism. The process started with the protest and revolt of Martin Luther against the authority and office of the pope in 16th century. Iqbal observes that Luther's challenge to the authority of Christian monastic order and church-organization resulted in complete displacement of "universal ethics of Jesus..by national systems of ethics and polity" ²⁵ He observes that 'the conclusion to which Europe is consequently driven is that religion is a private affair of the individual and has nothing to do with what is called man's temporal life'.

He says: It is, then, this mistaken separation of spiritual and temporal which has largely influenced European religious and political thought, and has resulted practically in the total exclusion of Christianity from the European states. The result is a set of mutually ill-adjusted States dominated by interests, not human but national.

Iqbal has expressed his concern that "the national idea is racializing the outlook of Muslims" and younger Muslims, inspired by European religious and political "ideas, are anxious to see them as living forces in their own countries, without any critical appreciation of the facts which have determined their evolution in Europe." He advised the Muslims:

(Judge not your nation on the criteria of Western nations; Special in composition is the Hashmi Prophet's nation) (Based on country and race is their organization; The force of religion stabilizes your organization)

Iqbal a true visionary for the Muslims of the region, raised voice for separate country before the demand of Muslim League in 1940 through a resolution 30 and this demand was the result of a process of evolution in his political philosophy / ideology from Indian nationalist to Muslim separatist in the period of just twenty-five years (from 1905 to 1930). This paradigm shift was extremely consequential and it enabled Iqbal to advocate for the amalgamation of Muslim majority provinces 'into a single state', in 1930, so that the Indian Muslims, a mere 'minority' in India might become a 'sovereign nation' in an independent country. This demand proved decisive factor in the subsequent demands of Muslims of Subcontinent who gathered themselves under the dynamic leadership of Quaid-i-Azam Muhammad Ali Jinnah and attained a separate homeland. Allama Iqbal was rather quick in transforming himself; he did not spend much time on the illusion of Indian nationalism. Sir Syed Ahmed Khan had already provided a basis of Muslim separatism; and philosopher and thinker like Iqbal would take no time in the appreciation of the situation of India and the nature of its masses. Then Iqbal, an avid and ferocious reader of books with a keen observation of world cultures / civilizations, did not believe on western narrow concept of nationalism. He introduced high ideals of life; endeavoured to recapture the glory of Islam in true spirits, reiterated on the Muslim renaissance, asked to follow the glorious path of Islam and, therefore, preached for a wider definition of nationalism. Iqbal not only strengthened the evolution of Sir Syed Ahmed Khan but also made the voyage of Jinnah very easy. If Iqbal were to remain as Indian nationalist, the dream to have a separate state would remain dream for Muslims of Subcontinent.

Quaid-i-Azam Muhammad Ali Jinnah (1876-1948)

Quaid-i-Azam Muhammad Ali Jinnah; the creator / founder of Pakistan, was a history-making leader / statesman 31 who possessed a visionary leadership, commitment to the cause having the capacity of political mobilization. He was a charismatic leader 32 and gave "separate identity and an undeniable recognition" 33 . He was born in Karachi in 1876, got his early education from Karachi and Bombay then went to England in 1894 to join Lincoln Inn to become barrister 34 .He entered politics by joining Indian National Congress 35 in 1906 and was elected to the Imperial Legislative Council in 1909 36 . Right from the outset, Jinnah was a 'thorough-going nationalist' 37 and so was his political philosophy. He came under the influence of nationalist as well as moderate personalities like Dadabhai Noruji and Gopal Krishna Gokhale 38 ; was even known as a 'Muslim Gokhale'. In this phase of Jinnah's life (1906-1910), he was staunch Indian nationalist and remained unconcerned with ethnic, religious and parochial divisions and considered territorial unity as supreme. He did not approve formation of Muslim League under Nawabs and Rajas and in 1910 defeated a Muslim candidate from Congress side

on a Muslim seat. Maulana Abul Kalam Azad, was an Indian nationalist 39 and like him, Jinnah considered the religious beliefs above the politics i.e. a personal matter. This was the time once he had nourished high sense of Indian nationhood, love for India and unity of all Indians (Muslims & Hindus) and envisaged the interests of Muslims in the context of Indian nationalism. He remained unaffected from the developments of that time; Bengal was partitioned in 1905 by Lord Curzon on administrative grounds and Muslims, by the stroke of good luck, were able to get majority in one province which could not be tolerated by Hindus. Therefore, Bengali Hindus, under the name of Bengali nationalism triggered a vigorous movement for the annulment of Partition of Bengal. Partition was actually annulled in 1911 and Muslims were dejected on the point that what was the loss of Hindus? Muslims had attained something, accidentally, without damaging or affecting the interests of Hindus; but it all could not be digested by prejudiced Hindus.

Jinnah joined Congress in 1906 as it had the manifestation of unity of India; and self-rule leading towards the emancipation from British colonialism. All India Muslim League was founded in 1906 but Jinnah remained aloof from it in its early seven years. It was only 1913 once he joined it on the assurance that it was as devoted as Congress to attain political independence of India; however, he did not leave Indian National Congress. Once Indian Home Rule League was founded with a manifestation to get independence of India, Jinnah became its chief organizer and President of its Bombay branch. Ian Wells describes the trajectory of Jinnah's early political career describing him as a 'liberal constitutionalist of sorts, a disciple of Morley in political philosophy and Gokhale in political strategy'. He was the 'idol of the youth' and 'uncrowned king of Bombay' at that time. He passionately believed in and assiduously worked for Hindu-Muslim unity. Gokhale, maintained about him:

'He has the true stuff in him and that freedom from all sectarian prejudice which will make him the best ambassador of Hindu-Muslim Unity: And, to be sure, he did become the architect of Hindu-Muslim Unity: he was responsible for the Congress-League Pact of 1916, known popularly as Lucknow Pact- the only pact ever signed between the two political organisations, the Congress and the All-India Muslim League, representing, as they did, the two major communities in the subcontinent.

'While being the joint member of Congress and Muslim League, Jinnah unleashed his relentless efforts to create political unity, bring both organizations closer to each other and forge unity among them to jointly fight against British and, therefore, rightly earned the title of 'Ambassador of Hindu-Muslim Unity' an epithet coined by Gokhale. Jinnah tirelessly worked on this unity and managed to have Congress and Muslim League hold their joint sessions of consultations; in 1915 they held meeting in Bombay and then in

1916 at Lucknow where an epoch making pact was signed named as Lucknow Pact. This pact was a wonderful epitome of give and take; but the Muslims attained the right of separate electorate, one-third representation in Central Assembly and protection of minority rights which subsequently proved very helpful in struggle movement.

In the first phase of his political career, from 1910 to 1930, Muhammad Ali Jinnah remained the ambassador of Hindu Muslim Unity; advocated for separate electorate and secured a crowning achievement in the form of Lucknow Pact (the only pact between Congress and the Muslim League). Meanwhile, a new political force in the person of Mohandas Karamchand Gandhi emerged at the political ambience and India appeared to be completely swayed under his undeniable / irresistible influence; resultantly creating an atmosphere of vitality, agitation, frenzy, and non-cooperation. Jinnah; a devoted constitutionalist renounced this approach, left Congress as well as Home Rule League in 1920 on issue of Swaraj (complete freedom). He also kept himself aloof from this political frenzy and non-cooperation movement of Khilafat Movement but still continued to be the believer of Hindu Muslim Unity. As a Muslim Leaguer now, he started working on converting league into an enlightened political body even at the time of the advent of Hindu revivalist movements (Sangathan, and Shuddhi) against Muslim entry in Congress in early 1920s and Jinnah remained working on rapprochement policy.

Then a decisive moment in the history of freedom movement came; Motilal Nehru (father of Jawaharlal Nehru) formulated a prejudiced report known as 'Nehru Report' in 1928 wherein even the right of separate electorate already conceded to the Muslims was confiscated. This report conspicuously revealed the true Hindu facet and their narrow-mindedness towards Muslims. How can a political organization could back out from the promise which it had already made, just few years after the concession when nothing wrong was done by that community? However, Jinnah under the same spirit of Hindu Muslim Unity and rapprochement offered reasonable amendments which were turned down by the Congress. A neutral mind would have stated that on looking at the amendments offered by Jinnah, the gulf between two nations was not a bigger one; but there was no desire to bridge it. Having been disappointed from the proposed amendments, Jinnah, resultantly in 1929, gave his Fourteen Points, which, for the sake of harmony with Congress, included recommendations of a federal form of government, separation of Sindh from Bombay, greater rights for minorities, reforms in NWFP, and one-third representation of Muslims in central legislature. These Fourteen Points were not accepted by Congress. This situation was beyond the comprehension of Jinnah. First of all, Congress could not accept his minor and reasonable amendments in Nehru Report (1928) of separate electorate and reservation of seats for Muslims in the legislatures and then did not give due weight-age to the Fourteen Points; he was

resultantly frustrated. He cried on this occasion and narrated it as 'parting of the ways'. Jinnah was in a strange position; many Muslims thought him too nationalist that interests of the Muslims were not safe in his hands, whereas Congress could not meet his modest and moderate demands halfway. Jinnah, in dismay went to London in 1930 and devoted himself to practice before Privy Council till 1935 once he was persuaded to come back to lead Muslims again.

Jinnah still tried to attain the objective of forging unity at the Round Table Conferences 48 in London (1930-32) and once elections under the Government of India Act of 1935 were announced, he was still thinking of co-operation between both organizations with coalition governments in the provinces. During the second phase of Jinnah's political career in 1930s, (which was certainly different from the first phase of 1906-1930) Jinnah aligned himself as the spokesman of Muslim minority but continued to search for opportunities to bring Muslims and Hindus together. But still he was an Indian nationalist as long as emancipation from British, Indian unity and Hindu-Muslim settlements were concerned; he was now talking about rights of Muslims without hinting at separation or partition. Jinnah described Muslims of India as a 'nation' in Legislative Assembly in February 1935 and stated that 'combination of religion, culture, race, arts, music and so forth make a minority a separate entity'. Then at Bombay, in March 1936, he asserted that 'Muslims could arrive at a settlement with Hindus as two nations'. In the following year (1937), he reiterated that there was a 'third party in India, the Muslims'.

Elections under Government of India Act (1935) were conducted in 1937 and proved fatal in the future relations between the two organizations; Congress secured an absolute majority in six provinces, and Muslim League did not perform well. Resultantly Congress ministries were formulated who unleashed discrimination 54 , and vendetta unto Muslims and adopted atrocious methods to annihilate them thereby convincing even Jinnah that both these nations were distinctively different from each other and their interests could not be common under any circumstances. Two and half years' rule by the Congress Ministries was truly an eye-opener for the Muslims of Subcontinent. Even the staunch supporter of Indian nationalism would turn its view point on the atrocities of Congress towards the Muslims. End of Congress Ministries in 1939 and Jinnah's decision to observe 'Day of Deliverance' marked the Jinnah's absolute transformation from Indian nationalist to Muslim separatist and he roared that the 'Muslims and Hindus are two nations'. This became evident and official in the demand for separate homeland in Lahore Resolution of Muslim League on 23 March 1940: We are a nation with our own distinctive culture and civilization, language and literature, names and nomenclature, sense of values and proportion, legal laws and moral code, custom and calendar, history and tradition, aptitudes and ambitions; in short, we have

our own distinctive outlook on life and of life. By all canons of international law, we are a nation.

This change in political philosophy, although not very simple, became a decisive factor in attainment of freedom as it infused new force /energy in the struggle movement; it rather triggered the movement in the most specific direction. Quaid-i-Azam Muhammad Ali Jinnah was once asked by a journalist that there was a time once he used to be a staunch supporter of Indian National Congress and the unity of Indians like the way he was now advocating the stance of Muslim League and cause of Muslims for separate homeland, he in an assertive way told that once he was a 'primary school student also'. Jinnah could never think of becoming a communalist or separatist. If the Congress and Hindus were on the constitutional ways safeguarding the rights of minorities, Jinnah would not change himself. If Hindus and Congress have shown flexibility on Jinnah's proposed amendments to the Nehru Report or have conceded to Jinnah's Fourteen Points, Jinnah would not change himself. Even if Congress had not unleashed a reign of terror during the Congress Ministries of 1937, Jinnah would not have changed. Jinnah's change was reactionary and was in response. Otherwise had no fears; no insecurities at all. It was a continuous display of Hindu narrow-mindedness, bigotry, prejudice, bias, rigidity, and perfidious designs that Jinnah was forced to transform himself from Indian nationalism to Muslim separatism.

Creation of Pakistan on 14 August 1947 was the ultimate result of this transformation and Muslims of India found a new life in the political struggle for independence. Muslims were then deemed a separate nation; other than the Hindus and a distinctive concept of Two-nation evolved. The ideological basis provided by Sir Syed Ahmed Khan and Allama Muhammad Iqbal were further strengthened by the political activism and charismatic leadership of Father of the Nation that all Muslims of Indian Subcontinent gathered under the banner of Muslim League to attain the coveted independence.

Conclusion

For a considerable period of time, Allama Iqbal and Quaid-i-Azam Muhammad Ali Jinnah remained staunch supporters of Indian nationalism; unity and love of India remained at the top of their philosophy rather than religious, racial, and ethnic considerations. It was the process of evolution and extensive study/contemplation/observation (in case of Iqbal) and Hindu facet, narrow-mindedness and bigotry attitude towards the interests / existence of Muslims (in case of Jinnah) in succeeding events from 1906 to 1939 (33 years) that both prolific leaders turned from Indian nationalism to Muslim separatism. This voyage is replete with sad incidents, sorry state of affairs, disappointments and disillusionments. Both leaders

eventually were convinced that the dignified survival of the Muslims of Subcontinent lies in the creation of two separate homelands before the departure of British; and this very conception became the supreme reason and a decisive factor in attaining the freedom.

Week 5: State and Society

The State and Its Elements

Definitions:

The state is the most universal and most powerful of all social institutions. The state is a natural institution. Aristotle said man is a social animal and by nature he is a political being. To him, to live in the state and to be a man were identical.

The modern term 'state' is derived from the word 'status'. It was Niccolo Machiavelli (1469-1527) who first used the term 'state' in his writings. His important work is titled as 'Prince'. The state is the highest form of human association. It is necessary because it comes into existence out of the basic needs of life. It continues to remain for the sake of good life.

The aims, desires and aspirations of human beings are translated into action through the state. Though the state is a necessary institution, no two writers agree on its definition.

To Woodrow Wilson, 'State is a people organized for law within a definite territory. Aristotle defined the state as a 'union of families and villages having for its end a perfect and self-sufficing life by which it meant a happy and honourable life'.

To Holland, the state is 'a numerous assemblage of human beings generally occupying a certain territory amongst whom the will of the majority or class is made to prevail against any of their number who oppose it.'

Burgess defines the state as a particular portion of mankind. According to Sidgwick, State is a combination or association of persons in the form of government and governed and united together into a politically organized people of a definite territory.

According to Garner, 'State is a community of people occupying a definite form of territory free of external control and possessing an organized government to which people show habitual obedience.

Prof. Laski defines 'state as a territorial society divided into government and subjects whose relationships are determined by the exercise of supreme coercive power.

Elements:

From the above definitions, it is clear that the following are the elements of the state

Physical bases of the State

- Population
- Territory

Political bases of the State

- Government
- Sovereignty

Population

It is the people who make the state. Population is essential for the state. Greek thinkers were of the view that the population should neither be too big nor too small.

Territory

There can be no state without a fixed territory. People need territory to live and organize themselves socially and politically. It may be remembered that the territory of the state includes land, water and air - space.

The modern states differ in their sizes. Territory is necessary for citizenship. As in the case of population, no definite size with regard to extent of area of the state can be fixed. There are small and big states.

In the words of Prof. Elliott 'territorial sovereignty or the Superiority of state overall within its boundaries and complete freedom from external control has been a fundamental principle of the modern state life'.

Government

Government is the third element of the state. There can be no state without government. Government is the working agency of the state. It is the political organization of the state.

Prof. Appadorai defined government as the agency through which the will of the State is formulated, expressed and realized.

According to C.F. Strong, in order to make and enforce laws the state must have supreme authority. This is called the government.

Sovereignty

The fourth essential element of the state is sovereignty. The word 'sovereignty' means supreme and final legal authority above and beyond which no legal power exists.

The concept of 'sovereignty' was developed in conjunction with the rise of the modern state. The term Sovereignty is derived from the Latin word *stion* with the rise of the supreme. The Tither of modern theory of sovereignty was Jean Bodin (1530-1597) a French political thinker.

Sovereignty has two aspects:

- Internal sovereignty
- External sovereignty

Internal sovereignty means that the State is supreme over all its citizens, and associations.

External sovereignty means that the state is independent and free from foreign or outside control.

According to Harold J. Laski, It is by possession of sovereignty that the state is distinguished from all other forms of human association.

State and Society:

The society consists of a large number of individuals, families, group and institutions. The early political thinkers considered both state and society as one. State is a part of society but is not a form of society.

Prof. Earnest Barker in his book entitled 'Principles of Social and Political Theory' clearly brings out the difference between state and society under three headings. They are,

- Purpose or function
- Organisation and structure

- Method

From the point of view of purpose the state is a legal association, which acts for the single purpose of making and enforcing a permanent system of law and order.

But society comprising of a plurality of associations, acts for a variety of purposes other than legal. These purposes are:

- Intellectual
- Moral
- Religious
- Economic
- Aesthetic and
- Recreational

The membership of the state and society are the same. But they differ as regards purpose. The state exists for one great but single, purpose; society exists for a number of purposes some great and some small, but all in their aggregate deep as well as broad.

From the point of view of organization the state is a single organization - legal, whereas society comprises within itself many organizations.

As regards method as pointed out before the state employs the method of coercion or compulsion, society employs method of voluntary action.

The purposes for which society exists makes the persuasive methods necessary and the multiplicity of its organization give ample opportunity to the members to relinquish one association and join another in case coercion is ever attempted.

State and Nation

The word 'nation' is derived from the Latin word 'natio' which means birth or race. The terms nation and state are used as synonym.

According to Leacock, a nation is a body of people united by common descent and language.

But the modern writers do not emphasize the racial aspects so much as the psychological and spiritual. It has acquired a political meaning in the recent times.

People who share common ideas and naturally linked to gather by some affinities and united are now called a nation. In the case of state feeling of oneness is not necessary as in the case of the four elements constituting the State.

State and Government

Government is often used with the 'state' as synonym. But both the government and the state are two different entities. There are differences between the state and government.

State

- State consists of population, territory, government and sovereignty.
- State possesses original powers.
- State is permanent and continues forever.
- State is abstract and invisible.

Government

- Government is part of the state.
- Powers of the government are derived from the state.
- Government is temporary. It may come and go.
- Government is concrete and is visible.

Branches of Government:

Executive

It is one of the three branches of government as given above.

State functions through the executive, the namely the government. It is the duty of the executive or enforce the laws passed by the legislature.

The executive who exercise real power is the real executive. The executive who has nominal power is the normal executive.

Powers and functions of executive are:

- Enforcing law
- Maintaining peace and order.

- Repelling aggression.
- Building friendly relations with other states
- When necessary to wage war to protect the country.
- Making appointments to higher posts.
- Raising money and spending them.
- Convening the sessions of the legislature and conducting business.
- Issues ordinances whenever the legislature is to in session.
- Implement schemes and projects to improve the social and economic conditions of the people.
- Power to grant pardon, reprieve or remission of punishment.

Legislature

The legislature is the law making branch. The legislature has an important role in the amendment of the constitution. The legislature is a deliberative body where matters of social economic and political concerns are discussed, debated and decided.

The British parliament is said to be 'the mother of parliaments'. It is the oldest legislature in the world.

According to Prof. Laski, law- making is not the only function of the legislature but its real function is to watch the process of administration to safeguard the liberties of private citizens. National Assembly as the Lower House. Senate as the Upper House.

The functions of legislature are

- Enact laws
- Oversee administration
- Pass the budget
- Hear public grievances
- Discuss subjects like
 - Development plans
 - National policies
 - International relations.

Judiciary:

Judiciary is the third important organ of the government machinery. Its main function is to interpret laws and administer justice.

Lord Bryce has said that there is no better test of excellence of government than the efficiency of its judicial system. The welfare of citizens depends to a larger extent upon the judiciary.

Judiciary is one of the pillars of democracy. Its interpretation ensures justice, equality and liberty to all its citizens. An independent and impartial judiciary is an essential feature of a democratic setup.

According to Justice Hughes, 'we are under a constitution, but the constitution is what the judges say it is'.

Functions of Judiciary:

- Administration of justice.
- To determine what is law and what is the scope and meaning of it. Interpretation of constitution and law
- To give advisory opinion on matters referred to it.
- To issue order or writs for the purpose of preventing violation of rights and law
- To act as a guardian of the constitution

Political System and State Structure of Pakistan

Within the first few years of its' birth, post-independence Pakistan faced a number of challenges. The first of two significant deaths, first in 1948 of its first head of state, Muhammad Ali Jinnah, and then the assassination in 1951 of its first Prime Minister, Liaquat Ali Khan, destabilized the new country, and may have been the cause of the emergence of conflicting visions of the ideological direction the country ought to pursue. It took almost eight years (till 1956) to agree to a final constitution, establishing Pakistan as a republic within the Commonwealth. Within two years, the new parliamentary system was facing challenges, and in 1958, General Ayub Khan launched Pakistan's first military coup, declaring martial law. In 1960 Khan became President, and by 1962, Pakistan saw its' second constitution, with politics placed in the firm grip of the military. At this point, the turmoil caused by the failure to win a second war with

India in 1965, mounting corruption and increasingly taxing relations with East Pakistan gradually undermined Khan's authority, finally forcing his resignation in 1969. The first election on a nationally democratic basis was conducted in 1970. The elections saw the primarily East-Pakistan based Awami League, lead by Shaikh Mujibur Rahman, gaining an overall majority. However, the results were not well-received in West Pakistan, and power was not transferred to elected leaders. This set the stage for a new constitutional crisis where, in the period following, relations between East and West Pakistan further polarised. In March 1971 Mujibur Rahman declared an independent People's Republic of Bangladesh, setting the stage for a nine month long civil war. In December 1971, India interceded in support of East Pakistan, and the ensuing Indo-Pak war resulted in a humiliating surrender by Pakistani forces. The surrender also marked the emergence of the former East Pakistan as an independent country, Bangladesh.

General Yahya Khan resigned the presidency in the aftermath of the war, and handed over leadership to Zulfiqar Ali Bhutto, Ayub Khan's former Foreign Minister, and the founder and leader of the Pakistan People's Party, which had won the majority of seats from West Pakistan in the elections of 1970. Bhutto became President and also the first civilian Chief Martial Law Administrator. The National Assembly approved the 1973 Constitution on April 10, 1973, and it came into effect on August 14. Bhutto took over as the Prime Minister of Pakistan from this date and Fazallahi Chaudhry was appointed as the President of Pakistan.

The 1973 Constitution declared Pakistan as a Federal Republic to be known as the Islamic Republic of Pakistan, recognizing Islam as the religion of the state. Pakistan was to be a Federation of four federating Units, Punjab, Sindh, the NWFP and Balochistan. The Constitution was parliamentary in nature, with a bicameral legislature at the Center consisting of two Houses, the National Assembly and the Senate. Although the 1973 Constitution has been held in abeyance during military rule in the late 1970s/early 1980s, and has to date, been amended 19 times, it is currently the constitution governing the state. The 18th Amendment to the Constitution, which was passed in April 2010, removed most of the constitutional changes introduced during military regimes, as well as formally changing the name of the North West Frontier Province to Khyber Pakhtunkhwa, and has granted provinces greater autonomy.

Executive

The 1973 Constitution lay down that the President was to be the Head of the State. The President was to act on the advice of the Prime Minister of Pakistan, and could be removed on the grounds of physical or mental incapacity or impeached on charges of

violating the Constitution or gross misconduct by a two-thirds vote of the members of the parliament.

The President

The President of Pakistan is chosen by a secret ballot through an Electoral College comprising the Members of the Senate, National Assembly and the Provincial Assemblies. A person who is a Muslim and not less than 45 years of age and is qualified to be elected as a Member of the National Assembly can contest the Presidential election. The President is elected for a term of 5 years and is authorized to appoint the Attorney General, Judges of Supreme Court and High Courts, and the Chief Election Commissioners. In the Provincial Government, each province was to have a Governor appointed by the President. He could be re-elected but could not hold office for more than two terms.

The Prime Minister

The Prime Minister is appointed by the President from among the members of the National Assembly, and has to demonstrate majority support in the House. The Prime Minister is assisted by the Federal Cabinet, a council of ministers whose members are appointed by the President on the advice of the Prime Minister. The Federal Cabinet comprises the ministers, ministers of state, and advisers.

Legislature

The bicameral federal legislature is the Majlis-i-Shoora (Council of Advisers), consisting of the Senate (upper house) and National Assembly (lower house). The National Assembly Members of the National Assembly are elected by universal adult suffrage (over eighteen years of age in Pakistan). The National Assembly has 342 seats, 272 of which are elected on a first-past-the-post basis.¹ The candidate who gains the major number of votes in a single constituency is nominated elected member of the National or Provincial Assembly. Of the 70 remainder seats, 60 are reserved for women and ten for non-Muslim minorities; they are allocated, on the basis of proportional representation, to parties that win more than 5% of the directly elected seats. Seats are allocated to each of the four provinces, the Federally Administered Tribal Areas, and Islamabad Capital Territory on the basis of population. National Assembly members serve for the parliamentary term, which is five years, unless they die or resign sooner, or unless the National Assembly is dissolved. Graph 1 shows the current distribution of seats in the National Assembly.

The Senate

The Senate is a permanent legislative body with equal representation from each of the four provinces, elected by the members of their respective provincial assemblies. The chairman of the Senate, under the constitution, is next in line to act as President should the office become vacant and until such time as a new President can be formally elected. The Federally Administered Tribal Areas (FATA) and Islamabad Capital Territory also have representatives presenting the Senate,² which has a total of 100 members, of whom 14 members are elected by each Provincial Assembly, 8 members are elected from Federally Administered Tribal Areas (FATAs) by the Members of National Assembly from these areas, 2 members, 1 woman and 1 Technocrat is elected from the Federal Capital by the Members of National Assembly, 4 women and 4 Technocrats are elected by the members of each Provincial Assembly. The term of the members of the Senate is 6 years. However, the term of the first group of the Senators, who shall retire after completion of first 3 years of the Senate, is determined by drawing of lots by the Chief Election Commissioner.

Both the Senate and the National Assembly can initiate and pass legislation except for money bills, where the National Assembly has an edge over the Senate, legislating exclusively on money matters. Only the National Assembly can approve the federal budget and all money bills. With exception to money matters, however, both the Houses work together to legislate. The Bills relating to the Federal Legislative List can originate in either House. If one House passes the Bill through majority vote, it is transmitted to the other House. If the other House passes it without amendment, it is presented to the President for assent. If the Bill, transmitted to the other House, is not passed within ninety days or is rejected, it is considered in a joint sitting of parliament, to be summoned by the President on the request of the House in which the Bill originated. If the Bill is passed in the joint sitting, with or without amendments, by the votes of majority of the members of the two Houses, it is presented to the President for assent. The President is required to assent to bills passed by both houses within ten days. However, in all bills except the Finance Bill, the President may return the Bill to the parliament with a message requesting that the Bill be reconsidered and that an amendment specified in the message be considered. The parliament is supposed to reconsider the Bill in a joint sitting. If the Bill is passed again, with or without amendment, by vote of the majority of the members present and voting, it is presented to the President and the President is required to give his assent within ten days; failing which such assent is deemed to have been given.

Under the Constitution, the Parliament may also legislate for two or more provinces by consent if a request is made by those provinces. If the Federal Government proclaims a

State of Emergency in any province, the power to legislate for that province is vested in the Parliament. But the bills passed by the Parliament during the State of Emergency, cease to be in force after the expiration of six months from the date the emergency is lifted. Nevertheless, the steps already taken under these Acts remain valid.

In exercises of its constitutional role, the Parliament also has other important duties to perform. The President, who is the Head of State, is elected by members of both Houses of the Parliament and by the Provincial Assemblies. The Prime Minister, who heads the Cabinet and is meant to aid and advise the President in his functions, belongs to the National Assembly. He enjoys the confidence of the majority of the members of the National Assembly.

There is a democratic procedure to remove the Prime Minister from his office if he loses the confidence of the majority of the members of the National Assembly. In such a situation, a resolution for a vote of no-confidence is moved by not less than 20% of the total membership of the National Assembly. If the resolution is passed by the majority of the total membership of the National Assembly, the Prime Minister immediately relinquishes powers.

Similarly, for the removal or impeachment of the President, not less than one-half of the total membership of either House may give in writing its intention to do so, to the Speaker of the National Assembly, or, as the case may be, to the Chairman Senate, for moving a resolution for the purpose. If, in a joint sitting of the two Houses, convened for the purpose, the resolution is passed by the votes of not less than two thirds of the total membership of the Parliament, the President ceases to hold office immediately.

In case an emergency is proclaimed, the Parliament holds the authority to extend the term of the National Assembly. Under the Constitution, the Parliament may also, on the request of the Federal Government, confer functions upon officers or authorities subordinate to the Federal Government.

Judiciary

The 1973 Constitution provided for a free and independent Judiciary. The Constitution guarantees a right to the citizens to be protected by law, and imposed two duties on them, loyalty to the Republic and obedience to the law. Any person who was found to abrogate or attempt or conspire to abrogate or subvert the Constitution was to be treated guilty of high treason. The Constitution conferred several kinds of fundamental rights to the people such as the right to life, liberty, equality and freedom of speech,

trade and association. The Constitution also declared any laws inconsistent with or derogatory to fundamental rights as null and void.

The judiciary includes the Supreme Court, provincial high courts, and other lesser courts exercising civil and criminal jurisdiction. The Supreme Court is the apex court in Pakistan's judicial hierarchy, the final arbiter of legal and constitutional disputes. The Supreme Court of Pakistan consists of a Chief Justice and not more than 16 other Judges appointed by the President. A person with 5 years experience as a Judge of a High Court or 15 years experience as an advocate of a High Court is eligible to be appointed as a Judge of the Supreme Court. The chief justice of the Supreme Court is appointed by the President; the other Supreme Court judges are appointed by the President after consultation with the chief justice. The chief justice and judges of the Supreme Court may remain in office until age sixty-five. The Supreme Court has original, appellate, and advisory jurisdiction. Judges of the provincial high courts are appointed by the President after consultation with the chief justice of the Supreme Court, as well as the governor of the province and the chief justice of the high court to which the appointment is being made. High courts have original and appellate jurisdiction.

In 2007, for the first time in Pakistan's history, the sitting Chief Justice was suspended by the government on charges of abuse of power. The Chief Justice was given the option to resign, but upon his refusal to comply with this "order," he was removed under a series of charges, including violating the norms of judicial propriety, corruption, seeking favours and misbehaving with senior lawyers. In response, the Chief Justice, Iftikhar Muhammad Chaudhry, decided to challenge his suspension in the Supreme Court of Pakistan. The Chief Justice's suspension was followed by widespread protests on the part of the legal community, civil society, and almost all political parties in the country. The protests centered around not only on the lack of validity of the allegations against the Chief Justice, but also on the question of whether the President had the power to suspend the Chief Justice under any circumstances. On 20 July 2007, Justice Chaudhry was reinstated to his position as Chief Justice in a ruling by the thirteen-member bench of the Supreme Court headed by Justice Khalilur Rehman Ramday. All thirteen of the sitting justices agreed that General Musharraf's action had been illegal, and ten of the thirteen ordered the reinstatement and ruled that he "shall be deemed to be holding the said office and shall always be deemed to have been so holding the same." After having been elected as President for second term by the Parliament, General Musharraf, in November 2007 pre-empted an impending court decision against his re-election, suspended the constitution, and declared a state of emergency. Justice Chaudhry convened a seven-member bench which issued an interim order against this action. He and other judges were again removed from their offices and put under house arrest along with his family members. Justice Chaudhry was reinstated only in 16 March

2009, seven months after the resignation of General Musharraf as President, and only after another protracted protest on the part of a number of groups. While the first phase of protests had focused on the unconstitutional action of General Musharraf, the post August 2008 protests were focused on the apparent reluctance of the then newly elected government to reinstate the Chief Justice.

The Federal Shariat Court constitutes another key pillar of the judiciary and consists of eight Muslim judges, including a chief justice appointed by the President. Three of the judges are ulema, that is, Islamic Scholars, and are supposed to be well versed in Islamic law. The Federal Shariat Court has original and appellate jurisdiction. This court decides whether any law is repugnant to the injunctions of Islam. When a law is deemed repugnant to Islam, the President, in the case of a federal law, or the governor, in the case of a provincial law, is charged with taking steps to bring the law into conformity with the injunctions of Islam. The court also hears appeals from decisions of criminal courts under laws relating to the enforcement of hudood laws that is, laws pertaining to such offenses as intoxication, theft, and sexual intercourse outside marriage.

In addition, there are special courts and tribunals to deal with specific kinds of cases, such as drug courts, commercial courts, labour courts, traffic courts, an insurance appellate tribunal, an income tax appellate tribunal, and special courts for bank offenses. There are also special courts to try terrorists. Appeals from special courts go to high courts, with the exception of labour and traffic courts, which have their own forums for appeal. Appeals from the tribunals go to the Supreme Court.

Within the constitution, the office of Wafaqi Mohtasibor Ombudsman is provided for, as established in many early Muslim states, to ensure that citizens had a forum on which to register complaints against public officials. Appointed by the President, the Mohtasib holds office for four years. The term cannot be extended or renewed. The Mohtasib's purpose is to institutionalize a system for enforcing administrative accountability, through investigating and rectifying any injustice done to a person through maladministration by a federal agency or a federal government official. The Mohtasib is empowered to award compensation to those who have suffered loss or damage as a result of maladministration. Excluded from jurisdiction, however, are personal grievances or service matters of a public servant as well as matters relating to foreign affairs, national defence, and the armed services. This institution is designed to bridge the gap between administrator and citizen, to improve administrative processes and procedures, and to help curb misuse of discretionary powers.

Military

The military in Pakistan has played an influential role in mainstream politics, having taken over from civilian governments on four occasions. Military governments were led by (in the 1960s) General Ayub Khan and General Yahya Khan, (in the late 1970s and 1980s) General Zia-ul-Haq, and (from 1999 to 2008), General Pervez Musharraf. In total, military or military backed civilian regimes have been in power for half of the years of the country's existence.

The influence of the military extends far beyond its constitutional role even in times of civilian rule. The military high command has on occasion acted as a mediator between the government and other state actors, and between political leaders. In addition it has exerted strong behind the scenes influence on foreign policy, particularly with regard to relations with India and Afghanistan. The military also has economic interests in Pakistan which it seeks to protect. According to one analyst, the growth of the military's business interests encourages the top echelons of the armed forces to support "policy making environments" that will "multiply their economic opportunities" and such actions are "both the cause and effect of a feudal, authoritarian, non-democratic political system" (Siddiq, 2007).

Elections

Pakistan's electoral history is characterised by the eternal tussle between the civilian and military regimes, with almost half of its existence being characterized by outright military, or military sponsored rule. Nevertheless, an analysis of election trends since 1970 showing that there are four clusters of voters in Pakistan, namely the PPP cluster, the Muslim League(s) cluster (i.e. the various factions of the party), the Religious Parties Cluster and the Regional Parties cluster (PILDAT 2008). It is estimated that roughly 60% to 75% of the votes are claimed by the first two clusters (PPP and MLs) while the remaining gets distributed among the other clusters as well as independents and miscellaneous. Frequently, no single party holds a majority, and therefore parties must form alliances during or after elections.

In terms of political stability, the past decade has been a tumultuous one for the country. The 1990s were characterised by coalition politics dominated by the Pakistan Peoples Party and Muslim League. India's nuclear test Pokhran-II triggered Pakistan to conduct two nuclear tests in Balochistan in May of 1998. The following year, the Kargil conflict was followed by a coup d'état by General Pervez Musharraf, ousting Prime Minister Nawaz Sharif. In 2001, Musharraf became the President and after the 2002 parliamentary elections, Musharraf transferred executive powers to the newly

elected Prime Minister Jamali, who was succeeded in the 2004 prime-ministerial election by Shaukat Aziz.

On 15 November 2007, the National Assembly, for the first time in Pakistan's history, completed its tenure and new elections were called. The exiled political leaders Benazir Bhutto and Nawaz Sharif were permitted to return to Pakistan. However, the 2008 Pakistani election was dealt a great shock on 27 December 2007 when Benazir Bhutto was assassinated while leaving a rally in Rawalpindi, leading to nationwide riots. The Pakistani Election Commission announced after a meeting in Islamabad that the election would take place on 18 February, after a five week delay. The PPP then decided to name Bhutto's son, Bilawal Bhutto Zardari, the new party leader with his father Asif Ali Zardari as co-chairman.

With 44% turnout, the 2008 election led to strong showings for the Pakistan Peoples Party (PPP) and the Pakistan Muslim League (Nawaz) (PML-N). Both parties initially formed a coalition to lead the government, and signed an accord, known as the Bhurban Accord, to lay out a course of action. Yousaf Raza Gillani was appointed as Prime Minister. On 18 August 2008, Pervez Musharraf resigned from the presidency when threatened with impeachment, and was replaced by Asif Ali Zardari in early September.

Local Government

Prior to 2001, the sub-provincial tier of government was composed of 26 divisions, with two further tiers (districts and tehsils) administered directly from the provincial level. Under the 2001 Local Government Ordinance (LGO), the divisions were abolished and a new three-tiered system of local government came into effect, comprising districts, tehsils and union councils, with an elected body at each tier.

At present, Pakistan is still a two-tiered federal state, not incorporating the local governments as a constitutionally recognised third level of government. The 17th Constitutional Amendment offered the local government system six years of protection (roughly from 2002 to 2009), during which the changes to the local government legislation could not be made by the provinces without the approval of the President (ADB et. al, 2004). The LGO, however, lapsed in the end of 2009, existing local governments ceased to hold office, and each provincial government is now supposed to finalize its own local government plan, and get appropriate legislation approved by its provincial assembly. This process is at various stages across the four provinces.

There are currently 113 districts in Pakistan-proper, each with several tehsils and union councils. The tribal areas comprise seven tribal agencies and six small frontier regions.

Regions

Pakistan is divided into 4 provinces, Sindh, Balochistan, Punjab and Khyber Pakhtunkhwa (formerly known as the North West Frontier Province). Additionally, Pakistan also has 3 territories, the Federal Capital (known as the Islamabad Capital Territory), the Federally Administrated Tribal Areas (FATA) and the region of Gilgit-Baltistan.³ The disputed territory of Azad Jammu and Kashmir legally has its own government and constitution, although it is sometimes referred to in international bodies as Pakistan Administered Kashmir.

At the time of independence, the population count was 32.5 million (Pakistan Economic Survey, 2010-2011). The last official population census took place in 1998, although the 2011 census is in process. In 1998, the population was estimated at 132.35 million (Population Census Organisation, 1998).

In the inter-census period, the population for each year is estimated on the basis of demographic and fertility studies. According to this estimate, Pakistan's population in mid-2011 is estimated at 177.1 million, growing at an annual rate of 2.07% (Pakistan Economic Survey, 2010-2011). However, many estimate the population to be as much as 10 million more than the suggested figure. According to the United Nations Population Council, Pakistan will be one of the 9 countries in the world accounting for over half of the global population by 2050 (UN Press release, 2009), with an estimated population of 318 million, thereby ranking third after India and China.

Provincial Governments

Each province has a governor, a Council of Ministers headed by a chief minister appointed by the governor, and a provincial assembly. Members of the provincial assemblies are elected by universal adult suffrage. Provincial assemblies also have reserved seats for minorities. After the passage of the 18th Amendment to the Constitution, there is now a well-defined division of responsibilities between federal and provincial governments. Most of the services in areas such as health, education, agriculture, and roads, for example, are provided by the provincial governments.

Political parties

Pakistan Peoples Party Parliamentarians (PPPP) The Pakistan Peoples Party is a center-left political party, which originally campaigned on a socialist platform, but is now considered more centrist. The party was founded in 1967, by Zulfikar Ali Bhutto. The party gained much popularity and support prior to Pakistan's split with Bangladesh,

winning the bulk of seats in West Pakistan in the elections of 1971 with its pledge of providing “Roti, Kapra aur Makaan” (food, clothing and shelter) to the people. The Pakistan Peoples Party Parliamentarians (PPPP) is a party formed in 2002 by the PPP for the purpose of complying with electoral rules governing Pakistani parties, which did not allow the original PPP to contest elections. The Pakistan Peoples Party (PPPP) is a mainstream political party in Pakistan, which was led by Bhutto’s daughter Benazir until 2007 when she was assassinated. The Bhutto dynasty continues with Benazir’s son Bilawal ‘inheriting’ Chairmanship of the party, with his father Asif Ali Zardari as co-chairman and current President. The PPP has held government four times since its formation, and is the largest political party of Pakistan. Although its heart land is in rural Sindh, it also has considerable support in southern Punjab in parts of Khyber Pakhtunkhwa, and to a lesser extent, in Balochistan. It has consistently laid claim to being the only party which has support in all provinces and territories of Pakistan – a claim that has been borne out in most elections.

Pakistan Muslim League Nawaz (PML-N)

The Pakistan Muslim League is a center-right party which has also held power on two occasions. The party was founded in 1962 as a successor to the previously disbanded Muslim League,⁴ and gained the (Nawaz) or (N) label in 1993 for its leader, Nawaz Sharif. PML-N is the second biggest party in Parliament. Mian Nawaz Sharif the leader of the party, has been elected Prime Minister on two occasions, but on neither instance was the party able to complete its term. Although the bulk of its support has traditionally been in North and Central Punjab, it also retains support in Khyber Pakhtunkhwa, and in parts of Sindh.

Pakistan Muslim League (PML-Q)

PML-Q is another centrist political party, and was formed in 2001, when the Pakistan Muslim League split into several factions on the removal of the Nawaz Sharif government by General Musharraf. The party supported former President Pervez Musharraf and was in power, as the lead member of a coalition, from 2002 to 2007. It is the 3rd biggest party in parliament after the PPPP and PML(N).

Muttahida Qaumi Movement (MQM)

The MQM began life as a party formed for the Urdu speaking Mohajir community based in Karachi and Hyderabad. It was founded and is currently led by Altaf Hussain, who has lived in self-imposed exile in London since 1992. The party originated as an ethnic

student organization in 1978 from the University of Karachi. The organization maintains liberal, progressive and secular stances on many political and social issues. In 1997, the MQM officially removed the term Mohajir (or refugee, which denotes the party's roots of Urdu-speaking Muslims) from its name, and replaced it with Muttahida (meaning "United"), in an attempt to widen its appeal outside urban Sindh. MQM currently holds the fourth highest number of seats in the National Assembly. It is currently a member of the ruling coalition in the federal government as well as in the Sindh government.

Awami National Party (ANP)

The Awami National Party (ANP) is a leftist, secular political party, with a long history in Khyber Pakhtunkhwa under different names. The current leadership are descendants of Pakhtun leaders who were affiliated with the Congress Party in pre-partition India. The party has had a checkered history, marked by conflict with the federal government, but is currently part of the ruling coalition in the center as well as in Khyber Pakhtunkhwa.

Pakistan Tehreek-e-Insaf (PTI)

In 1997, former cricketer Imran Khan started a socio-political movement in Pakistan known as Movement for Justice (Urdu: Tehreek-e-Insaaf). As the fastest growing political party in Pakistan, PTI is establishing itself as one of the country's mainstream national parties, and is said to have made tremendous strides in gaining support in the last two to three years.

Other than the parties listed above, the religious parties, mainly the Jamaat-i-Islami and the Jamiat Ulema e Islam (Fazlur Rehman group) have been represented in parliament, although they have rarely garnered more than 5% of the vote. In the elections of 2002, however, an alliance of religious political parties, the Muttahida Majlis e Amal or MMA, came to power in the province of Khyber Pakhtunkhwa, and also had a respectable showing in the National Assembly.

Week 6:

Constitutional

Development

Constitutional Development in British India

Background

Now we are going to discuss the contents of different Acts which the British govt enforced in India from time to time. So that our discussion of the political development is within the backdrop and the background of the constitutional changes which the British made in India.

Following acts were introduced by the British government in India

- Indian Councils Act, 1861
- Indian Councils Act, 1892
- Government of India Act, 1909
- Government of India Act, 1919
- Government of India Act, 1935

When we look at these five Acts which we will be discussing very shortly, what we find is the practice of gradualism. The British introduced political and constitutional changes step by step and gradually. They gradually opened up the political process to Indians. While discussing all this we must keep in mind that all these major constitutional documents and other actions which the British adopted were basically for a colony, India was at that time a British colony and from the British point of view the interests of the empire was supreme. So while discussing all these Acts we have to keep in mind this reality that we are discussing the constitutional developments in a state which was under the colonial rule of British.

End of East India Company's Rule

We have to go back to 1858 to start discussion on constitutional development. On August 2, 1858 British Parliament passed a law for complete takeover of all rights of the East India Company over India. Previously, that is before this law was passed East India Company was running India although East India Company was set up under a British law and the British govt had influence in the affairs of the state but it was not the direct rule of the British Crown. So in August 1858 that law came in and they decided that under this law the Indian administration would be taken over by the British govt. Post of Secretary of State for India was created through the cabinet. The Secretary of State for India was empowered about government and revenues of India.

On November 1, 1858 the law that had been passed became operative and Queen Victoria issued a proclamation for the assumption all responsibilities and control of India by the British Crown and from that time to onward India was being run directly

by the British Crown and East India Company had been pushed to the periphery. And Queen Victoria also became the head of the state or emperor India and that was the change and this change that is the British Crown directly assuming of India then began to introduce constitutional changes for running this colony that is the Indian colony in an effective, systematic and organized manner of constitutional significance and in this connection the first legal framework of constitutional significance for the point of view of political development in India after 1857 was India Council Act of 1861. Lord Canning, Governor General of India was given the title of "Viceroy." He continued in office but not as the Company's title representative of British Crown. Moreover, armies of the company came under British Control.

Indian Council Act, 1861

This act was the first legislation by the British government in India. Before that, laws were promulgated by the East India Company. This Act was passed by the British parliament and in this Act the British govt outlined certain broad principles which they thought would be relevant and useful for running administration in India and therefore, this Act Indian Council Act of 1861 becomes important because for the next 30 years this Act was the main framework within which the British Indian govt was working although changes were made and some other laws were brought in but the basic document was this Act of 1861.

This Act provided for the expansion of the Executive Council that is the EC of the Viceroy because once the British took over the Indian administration Governor General also assumed the title of Viceroy. So, the Viceroy's EC was to be expanded. Viceroy or the Governor General could assign special tasks to any members of the Executive Council.

Important matters were to be discussed with the Governor General. Some important subjects were kept directly under the Viceroy, e. g., Foreign Department. Foreign in Indian content basically meant the dealing of the British Indian govt with the princely states. Different states that existed in different parts of India which were not technically under the British rule. Since it was an important field so it was being managed by the Viceroy.

Another important feature of this Act was that the non-official members were to be nominated to the Council and in this connection, Indians could also be appointed to the Executive Council.

Membership of the Council was raised: 6 to 12. Half of them were to be non-officials, nominated for two years.

The Council in its legislative capacity was given very limited legislative powers. It was just the beginning the British desire was not to create a really a legislative body, they

could not want to do that at that time. So, some powers were given to raise questions but those were very limited powers which were given under this act.

In this Act the most significant development was representation of Indians by nomination whose number was raised from 6 to 12. In Madras and Bombay Councils approval of the Governor General (GG) and Governor was needed. This act provided Indian representation by nomination. After the episode of the 1857 Sir Syed Ahmed Khan wrote a pamphlet *Risala-i-Asbab-e-Baghawat-i-Hind* in which he described one of the reasons of the mutiny that there was no communication between the ruler and the ruled because the Indians had no representation in any legislative body, therefore there was no way that the British govt could understand what are the reactions of the people to the policies and administrative decisions. In this way the Indians had no channel to communicate their concerns to the British govt and from Sir Syed's point of view that was projected from that pamphlet this was an important reason that most of the grievances developed and along with other causes contributed to what happened in 1857. So, he proposed that there has to be some method or some arrangement for communication between the ruler and the ruled and here in this Act we see that the British govt took an important decision that is Indians were to be brought into the governmental process but the system was through nomination, elected principle was introduced later on but at this stage it was through nomination which obviously means that the people who were acceptable to the British were to be nominated.

Nevertheless, it was a beginning that some Indians were sitting in such an important council and in this way communicate what the educated Indians were thinking at that time. So, this Act is important in this respect that the process of induction of Indians into the governmental system began here.

Indian Council Act of 1892

Introduction:

This Act was introduced after 31 years of the first legislation and during these 31 years there were certain administrative changes, certain laws were brought in but the formal changes were made in 1892.

Features:

Now let's take up the changes that were taking up in this Act of 1892

- The first significant change was that the size of Legislative Council increased.
- In Central Legislative Council the membership was increased: 10 to 16 members. Which means a little bit more people were inducted to the council

- At Provincial level representation was increased but the size varied from province to province. In Madras & Bombay 8 to 12, Bengal 12 to 20.
- So far as powers were concerned there was slight improvements from 1861. Limited powers were given to the legislatures. Questions could be asked and raise issues but ultimate powers lied with the Viceroy or the Governor General.
- Here in this Act some element of elective principle was also introduced. Nominal elections through special interests were allowed which they had identified not the individuals but special interests and one example was chambers of commerce and the university senate which ultimately became the electoral college. So here in this Act you had a very limited introduction of the elective principle but a very selective and only certain special interests could benefit from that facility. Moreover the ultimate powers were kept with the GG or the Viceroy and the British govt. It is that body who would go with these councils with the exception of certain limited collective elements but generally the British govt could because of this law determine who would be sitting there. GG and the British government made these appointments.

Analysis

But if you compare this with the Act of 1861 definitely you would find an improvement, a slight and marginal improvement but nevertheless the principle of gradual development goes on from 1861-1892

Government of India Act, 1909 (Minto-Morley Reforms)

This Act was the third important constitutional document. By the time the Indian Act of 1909 was enforced there had been significant changes in the political questions in the political domain of India. Congress party had been set up in 1885 and with the beginning of the 20th century it began to make more and more demands from the British govt. In 1906 the Congress was talking about self govt in India and that finally became its demand. In 1906 the ML was also set up in India and in the same year ML had presented its political demand to the Viceroy. So, by 1909 there were more political activities, there was ML and Congress and both were there were mands on the British system. And it is against the backdrop of these demands that the British govt introduced this law. This Act is also described as the MINTO-MORLEY REFORMS. What were its major features?

This act was another step towards giving Indians more representation in the Government.

This act provided

The first step was that the Legislative Councils whether at the centre or in the provinces their size was expanded

Central: the strength of additional members was raised up to 60 which was a very reasonable strength at that time if you compare it with the Act of 1892 however, the British govt maintained official majority that is non-officials some of which were nominated and some were elected they were in a minority.

Provincial: At the provincial level, the size varied in different provinces.

Bombay, Madras, Bengal, UP: 50

And at the provincial level the British govt decided to give majority to non-official. So, this was a significant change that at least at the provincial level if not at the centre the majority was non-official, however, All the Non-official members were not elected; some of them went there because the govt nominated them

Powers of the council were also increased. Now, Budget could be discussed but they could not really reject it altogether only discuss it. In addition to asking questions the Members were allowed to present Resolutions and issues of importance however, the resolutions passed by the councils whether at the central or the provincial level are never bindings, and that is the standard principle that only recommendations from legislation to the govt and it is up to the govt to implement or ignore those resolutions but the resolutions provide an opportunity which they did to Indians at that time after 1909 Act became effective, to raise issues of public importance, the issues which they thought the govt must take notice of, so they could raise issues either in the form of questions or in the form of resolutions. This was an opportunity to present their point of view but the British govt had enough powers to ignore what these people wanted at that time.

Another important feature of this Act was that the Executive Councils were formed for Bombay, Madras, Bengal, and as well as the provinces which had LT. Governors was provided for that these kinds of councils were set up at the provincial level.

In this Act, principle of election was expanded that is the electorate expanded, the People who could vote, their number increased but it was still limited. For example, the members were elected by those who were the members of the university senate, District Boards, Municipal Committees, Zamindars, and Chambers Commerce these are few examples of those who could vote at that time and that is under the govt of India Act 1909 and definitely the electorate expanded under this Act.

The last but no significant feature of this Act was the principle of Separate Electorate for the Muslims. Separate Electorate implied that the Muslim representatives whether at the central or at the provincial level would be elected by only Muslim voters. This was the demand which the Muslim delegation presented to the Viceroy Lord Minto in 1906 at Simla what is often described as the Simla Deputation. At that time the viceroy agreed on the principle and agreed to look into the matter sympathetically. Three years later when this Act was enforced in 1909, the principle of Separate Electorate was incorporated in this Act and since 1909 to 1947 when the British rule came to an end the principle of Separate Electorate existed in India and subsequently it was shifted to some other communities in India which initially was a Muslim demand. So, this principle of SE makes this Act a significant development for the Muslims.

Government of India Act, 1919 (Montagu-Chelmsford Reforms)

In order to understand this Act, we will have to give a brief introduction of the developments during the last decade before this Act was enforced in India. Previous Act came in 1909 and this Act came in 1919. During these 10 years political activities in India intensified. In 1913 the ML adopted self govt as its principle and there were reasons that why the 3 major communities in India perturbed for one reason or the other. In 1914, First World War started and the British joined the War and by virtue of the British joining the war India was also involved in the war. In 1916 the ML and the Congress signed the Lucknow Pact for constitutional reforms. Luck Pact was a set of proposals which both parties wanted. The British govt considered while making the law that ultimately came in 1919. This war period was a period of some turmoil in India and in view of this kind of situation the British wanted to seek the cooperation of the Indians in its war efforts. The British wanted to secure the cooperation of the Indians.

For that purpose, they made an announcement on August 20th 1917 and in this announcement the British govt talk about the gradual induction of Indians in all the branches of government. This was one of the demands which Indian leaders were making and here they were saying that gradually Indians would be inducted in all branches of government. Second part of this announcement was that gradually representative or responsible govt would be introduced in India. Another part of the

announcement was that the Indians would also be inducted to the commissioned ranks of the army. It may be pointed out here that until that date, 1917 Indians could not hold the ranks in the Indian army. Commission ranks means all those ranks starting from 2nd. Left to upward, what highest ranks they hold at that time was the Viceroy Commission ranks.

In the present-day context of Pakistan Viceroy Commission Officers could be compared with the Non-Commission Officers in the Pakistan army, so the Indians could not go beyond that but in 1917 on the insistence of the Indian leaders opened the commissioned ranks of the army for the Indians and that system was introduced in 1918. Since we are not discussing this so we will not pursue this point anymore.

Basically, there were two changes in the Act of 1919, gradual involvement of Indians in all govt departments and sections and induction of Indians on the commission ranks in army. After that the important development was that the secretary of state for India whose name was Montague came on a visit to India in November 1917 and he spent several months in India talking to leaders on political and constitutional issues. On the basis of these deliberations a report was released in 1918 called as Montague-Chelmsford Report of 1918. And this report became the basis of the Indian Act of 1919. This Act was approved by the British parliament and signed by the king and by December 1919 this became the basic constitutional document for India.

Salient Features:

Let's take up now some important features and attributes of this Act that is Govt of India Act 1919. The major provisions of this Act

This act provided a bicameral legislature at the Centre, which consisted of two houses. The Upper House and the Lower House.

The Upper House was the Council of State, with a membership of 60 out of which

34 were to be elected which means that the elected members were to have majority

and 26 nominated official & nonofficial members. The Council's tenure was fixed at 5 years.

The Lower House was Legislative Assembly which consisted of 145 members, out of whom 105 were elected and the rest would be nominated. So even here we see that the elected members dominate the lower house members.

Direct elections were introduced with limited franchise on the basis of property tax paying, previous experience of legislative councils, university senate, district councils, etc. It was not Universal adult franchise, there were certain condition described on the bases of which people could have right to vote. In other words, those who fulfill those qualifications were entitled to elect the members to the legislature.

Another feature was what was the continuation of the previous Act that is the principle of Separate Electorate for minorities. Muslims electing their own representatives to the central as well as to the provincial legislature.

If, we look at the powers of the assembly these were limited in scope. Nevertheless, slightly more than in the past. Limited law-making powers were assigned to the Legislature but for certain categories prior permission was required. It had no control over defense, foreign policy, budget etc. Legislature could refuse grants but GG could restore them. Most of the budget was not under their control, same was the case with the defense and foreign policy, although they could discuss all those things but they could not really reject it, if they reject a particular grant the GG could approve of it or sanction it even it has been turned down.

They could ask Questions, move Resolutions, and another important thing was Adjournment Motions were allowed for this assembly. In a way this assembly when it came into existence in 1921 and elections were held from time to time was a lively assembly which dealt with different issues and different kinds of problems.

When we move on to the provincial assembly, we find that assemblies were of different sizes and like the federal assembly their powers were limited

G.G. remained a powerful office with all the executive, legislative powers with a nominated Executive Council. In other words, GG had the wide ranging powers at the central level and at the provincial level more or less similar powers were enjoyed by the Governor within his own province. So, the Executive and the GG were very powerful.

So far as the division of powers is concerned this Act provided for a central list and a provincial list, two lists of subjects were given in the act, one was Central and the other was Provincial. Centre had overriding powers.

Diarchy System in the Provinces:

The act introduced DIARCHY system in the provinces which was the most significant feature of this Act. Principle of Diarchy meant that you distribute powers at the provincial level; certain important departments were given to members who were responsible to the GG and in this case the Governor. They were not answerable to the assembly in the provinces. According to the new arrangement subjects were divided into two categories i.e., reserved subjects and Transferred subjects. Reserved Subjects certain members performing the function but answerable to the Governor Reserved subjects included judiciary, canal, land revenue, Finance, press, power, etc.

Transferred Subjects were given to ministers who were answerable to the provincial legislature. So, in this way the powers at the provincial level were distributed. Transferred subjects included Local govt. education, public health. Transferred subjects were less important subjects given to others. In case of a dispute, if something belonged to reserved or transferred side, the Governor was entitled to make the final decision.

Limited Responsible Government at the provincial level was introduced. The system of Diarchy was complicated.

The continuous tussle between the elected and nominated members created fear of breakdown of administration. GG had Control on key departments. Elective elements became strong in the legislatures.

This division was creating lot of problems but the British didn't want to give so many powers to Indians, therefore they adopted this principle of Diarchy.

Government of India Act, 1935

It was the most important and most comprehensive legislation introduced by the British Government in India. It was the most significant document in India. It was gradually formulated starting with the Simon Commission, Round Table Conferences, White paper (1933) and J.S.C. it was a lengthy document passed by the parliament in July 1935 and got Royal assent in August 1935.

Salient Features

This Act introduced the system of federalism for the first time, although its seeds could be found in the govt of India Act of 1919 but here a federation was established with provinces and the princely states. It provided a Federal System with a centre, 11 Governor Provinces, 6 Chief Commissioner Provinces and the states willing to join it.

Powers were distributed into three lists of subjects which were given with a powerful centre. Federal list had Defense, Postal services, External affairs Coinage and Communication. Federal list had the more powers. Provincial list included education, police, Local self-government, justice, agriculture, public service, fisheries and forests. The concurrent list included criminal law, civil marriage, divorce, registration, bankruptcy, factories and succession.

Two houses of Central Legislature:

- Council of State comprised of 260 members, out of which 156 were from British provinces and 104 from Indian States.
- Method of election was indirect. Communal representation was also secured.
- ii. Federal Assembly was lower house consisted of 375 members. Out of which 250 represented British provinces and 125 from Indian States.
- They were elected by provincial legislatures on the principle of separate electorate.
- States were to nominate their members.
- Limited Powers were given to legislature:
- 80 percent of budget was above their vote.
- They could do law making for two lists but GG could turn down or refuse the bill keeping it for consideration of the British Government.
- This constitution provided a Powerful GG: Executive Chief having powers of Act on advice
- Independent Judgment
- Discretion
- Emergency powers
- Ordinances
- Power to rule provinces directly

Provincial Governments:

- Governors enjoy the powers like the GG in the Centre.
- Diarchy abolished in provinces.
- Responsible government was formed.
- Provincial legislatures not unicameral. Act provided for bicameral legislatures in six provinces and unicameral in five provinces.
- Franchise extended but still restricted on the basis of land revenue Rs. 5, Non-transferable property of Rs. 60, Education: Primary.
- Federal Court and High Courts were formed under the act
- Burma was separated from India.
- Sind was separated from Bombay.

Comments:

- Federal part of the act was not introduced.
- Provincial part introduced in 1937.
- Provincial autonomy was provided.
- Elected governments were formed in provinces
- A strong centre was maintained.
- This act expanded electorate.
- Indian government under this act had no control over defense.
- Indian legislature could not amend it.
- Federal legislature elected indirectly
- GG was given overriding powers, some powers in his discretion, some powers on his individual judgment and some powers on the advice. Similarly, in the provinces where principle of autonomy was introduced Governors have some special powers. The system of provincial autonomy was introduced which was the most important feature. This Act was introduced only at the provincial level, the central part was not introduced and in 1937 provincial part as provincial autonomy was introduced and it became operative from 1937 and lasted till 1947.

Constitutional Development - Rule under the British Crown (1857-1947)

This begins the 2nd phase of the Constitutional development under the British Crown.

Government of India Act of 1858

- Government of India Act of 1858 passed by British Parliament, brought an end to the rule of East India Company. The powers were transferred to the British Crown.
- The Secretary of State for India was given the powers and duties of the former Court of Directors. He Controlled the Indian Administration through the Viceroy of India.
- The Secretary of State for India was assisted by the Council of India. This Council had 15 members. The Council was an advisory body.
- Governor-General of India was made the Viceroy of India.
- Lord Canning was the 1st Viceroy of India.

Indian Council Act of 1861

- Indians were nominated as non-official members for the 1st time in the Legislative Council of Viceroy.
- Legislative Councils were established in Provinces and Centre.
- Legislative powers of the Provinces of Bombay and Madras were restored.
- Legislative Councils were started in the Provinces of Punjab, North-Western Frontier Province (NWFP), Bengal.

Indian Council Act of 1892

- The size of the Legislative Council was increased.
- The Legislative Council was given more power, they had the power to deliberate on the
- Budget and could pose questions to the Executive.
- Indirect elections were introduced for the 1st time.
- The Principle of Representation was introduced as per provisions given in the Indian Council Act of 1892.

Indian Councils Act, 1909 - Morley Minto Reforms

- Indian Councils Act of 1909 is commonly known as Morley Minto Reforms.
- For the 1st time, Direct elections were introduced for the Legislative Councils.
- The Central Legislative Council was renamed as the Imperial Legislative Council.
- The Communal representation system was introduced by giving separate electorate. It was a system where seats were reserved only for Muslims and only Muslims would be polled.
- For the first time, Indians were appointed to the Executive Council of Viceroy. Satyendra Sinha was the law member.

Government of India Act, 1919 - Montagu Chelmsford Reforms

- Government of India Act, 1919 was also known as the Montagu Chelmsford reforms.
- Bicameralism was introduced for the 1st time.
- Provincial and Central Subjects were separated.
- Dyarchy, a scheme of Dual Governance was introduced in the Provincial Subjects, it was divided into Reserved and Transferred. The transferred list included agriculture, health, education, and supervision of the local government. The Transferred list was given to the Government of Ministers answerable to Provincial Council. The reserved list included communications, foreign affairs, defense; this transferred list was under the control of Viceroy.
- Out of 6 members in Viceroy's Executive Council, 3 of them were Indians.
- The Act provided provisions for the establishment of the Public Service Commission in India for the first time.
- Communal Representation extended to Christians, Anglo-Indians, Sikhs.
- The franchise was given to a limited population which was based on people who had taxable income, had property and paid land revenue of Rs 3000.
- Montagu Chelmsford Reforms made provision for setting up a statutory commission at the end of 10 years to look into the working of the Government.

Government of India Act 1935

This was the longest and last constitutional measure introduced by British India. It was the result of multiple round table conferences and a report by the Simon Commission.

- Bicameralism was introduced in 6 Provinces (Bengal, Bombay, Madras, Assam, Bihar, United Provinces) out of 11 provinces.
- The Legislature in the provinces were enlarged.
- As per the Act, the powers were divided into Federal List, Provincial List and Concurrent List.
- Provincial autonomy was introduced in the Provinces by abolishing the Dyarchy.
- There was provision for the adoption of Dyarchy at the Centre.
- Provided provisions for establishing Federal Court, Reserve Bank of India (RBI).
- There was provision for the establishment of All India Federation consisting of Provinces and the Princely States as units.
- Due to the length of Government of India Act 1935, it was divided into 2 separate Acts.

Cripps Mission - 1942

In 1942 Cripps Mission was sent to India under the leadership of Sir Stafford Cripps. Some of the proposals given by the Cripps Mission are given below.

- Dominion status would be given to India, after the 2nd World War.
- Once the Second World War ends, an elected body would be set up in India for framing of Indian Constitution.
- The even the Indian States would participate in the Constitution-making body.
- Almost all the Parties and sections in India rejected the proposals given by the Cripps Mission.

Cabinet Mission - 1946

Some of the main proposals of the Cabinet Mission plan was

- The Indian States and British Provinces would combine to form Union of India
- A Constituent Assembly would be established consisting of 389 members.
- 14 members from Major political parties would form an interim government

- A representative body would be formed named as the Constituent Assembly.
- Until the Constitution was framed, the Constituent Assembly would act as the Dominion Legislature.
- Until the Constitution was framed, India would be administered as per the Government of India Act, 1935.

Mountbatten Plan - Indian Independence Act - 1947

- British India was partitioned into India and Pakistan with effect from 15th August 1947.
- Conferred complete legislative authority to the Constituent Assembly.
- Established Governments in both Provinces and States.